IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

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|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

**FULL FILING-FACING BINDER COVER SHEET**
**Date: April 9, 2026**

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Prepared by:

_____

Benjamin Barber, Pro Se

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# MOTION FOR APPOINTMENT AND APPEARANCE OF GUARDIAN AD LITEM

Movant, Benjamin Barber, respectfully requests appointment and appearance authorization for a Guardian ad Litem ("GAL") for Jane Kay Cortez.

## I. REQUESTED RELIEF

**1.** Appoint a GAL for Jane Kay Cortez for purposes of this proceeding; if the Court finds suitability established on this record, appoint Benjamin Barber, and if not, appoint a neutral GAL selected by the Court.

**2.** Authorize the GAL to appear, investigate, and make recommendations regarding case posture, capacity-related concerns, and alignment of requested relief with Jane Kay Cortez's interests.

**3.** Authorize the GAL to review filings, interview relevant parties, and submit a written report by a court-set deadline.

**4.** Set a status hearing after GAL report submission.

## II. GROUNDS

**5.** The record reflects material factual conflicts affecting case integrity, including petition-stage statements and competing claims regarding prior authority, service/notice, and order compliance.

**6.** The matter also includes allegations of housing-process interference, some of which remain provisional pending certified and authenticated records.

**7.** Movant's present understanding from the signed restraining-order sequence in case 25PO11530 is that Benjamin Barber was previously recognized in a guardian-ad-litem posture for Jane Kay Cortez in that protective conflict; Movant treats this continuity point as provisional until certified copies are lodged.

**8.** If certified records confirm prior GAL recognition/grant naming Benjamin Barber for Jane Kay Cortez, Movant requests that this Court align present representation handling to avoid inconsistent treatment of the same protected person across related proceedings.

**9.** Until such certification is lodged, Movant does not ask the Court to treat prior-GAL continuity as an adjudicated fact or as a stand-alone appointment predicate in this case.

**10.** Even if prior-GAL continuity is not yet fully certified, appointment/appearance clarification is independently warranted here because the present record reflects material factual conflict, contested emergency-control allegations, and protective-case management needs affecting Jane Kay Cortez.

**11.** The April 3-4, 2026 counsel email chain reflects service-labeled transmission to Alex Bluestone in this same Jane Cortez guardianship controversy and counsel's acknowledgment of representation in that guardianship matter while disputing acceptance of service, supporting same-matter notice context while preserving service-validity questions for Court determination.

**12.** The requested GAL scope is narrowly tailored to unresolved protective-proceeding questions: (a) current wishes and welfare concerns of Jane Kay Cortez, (b) whether requested emergency/plenary relief is broader than necessary on the present record, and (c) what least-restrictive protective structure can be supported by admissible evidence.

**13.** Movant requests appointment only for neutral investigation/reporting support and not as a merits shortcut on disputed collateral housing, eviction, or federal-claim questions.

13A. If any party contests Movant's suitability to serve as GAL, Movant requests that the Court first resolve suitability on a limited record and, if suitability is not established, appoint a neutral GAL without delaying threshold protective scheduling.

13B. For consistency with the shared deontic mapping attachments, the prior-GAL continuity branch referenced in this motion is Rule ID R-GAL-01 and remains proof-gated unless certified prior records are lodged.

13C. Any uncertified status note, oral relay, or summary chart regarding prior-proceeding continuity is offered as context only and not as completed proof of prior-GAL continuity.

## III. LEGAL AUTHORITY

**14.** ORS 125.025 and ORS 125.050 support this Court's protective-proceeding authority to structure case management and apply ORCP as appropriate to protect Jane Kay Cortez's interests.

**15.** ORS 125.065, ORS 125.075, and ORS 125.080 support notice, objection, hearing, and participation management in this protective proceeding, including targeted appointment/reporting structure where needed for reliable fact development.

**16.** Where emergency/plenary control requests are disputed on materially conflicting records, Chapter 125 protective authority permits the Court to use a neutral GAL appointment/appearance structure to develop a reliable record before broader coercive or plenary determinations.

**17.** The requested GAL role is limited to investigation, reporting, and best-interest input to assist the Court's threshold reliability and least-restrictive-scope analysis; it does not adjudicate collateral housing merits.

**18.** Independent of any ORCP pathway, this Court's Chapter 125 protective authority supports a tailored neutral-investigation structure where factual conflict and reliability concerns are shown on the current record.

**19.** This motion relies primarily on Chapter 125 protective-case authority for the requested appointment/appearance structure.

**20.** To the extent applicable in this protective posture, ORCP 27 is offered only as a secondary procedural support path when qualifying incapacity-related circumstances and evidentiary need are shown.

**21.** Movant does not condition requested relief on ORCP 27 applicability; if the Court declines any ORCP 27 branch in this probate posture, Movant requests the same appointment/appearance relief

under Chapter 125 protective authority alone.

**22.** This Court has discretion to appoint a suitable GAL and to structure reporting and status deadlines to assist fact development and protect the interests of the protected person.

22A. Movant requests that any order appointing Benjamin Barber as GAL include an express suitability finding and conflict-scope limitation to this case only, and that absent such finding the order appoint a neutral GAL.

IV. ORCP 27 PROCEDURAL PREDICATES (SECONDARY PATHWAY; TO THE EXTENT APPLICABLE)

**23.** ORCP 27 D predicate: this motion is supported by declarations containing facts offered to show qualifying need and factual conflict for appointment/appearance clarification in this protective proceeding.

**24.** ORCP 27 E recipient path (to the extent applicable here): Movant will provide notice to Jane Kay Cortez (respondent/protected person), Solomon Samuel Barber, and other known interested persons identified by reasonable inquiry (including any known current fiduciary/agent roles).

**25.** ORCP 27 F proof path (to the extent applicable here): Movant will file a notice-compliance declaration identifying who was served, when, by what method, and what proof records are attached.

**26.** Movant has prepared a Supplemental Declaration Re ORCP 27 Notice-Compliance Status for completion and filing with service-specific facts and attached proof records.

26A. Movant does not request any ORCP 27-specific adverse determination against a party unless and until the ORCP 27 notice-compliance declaration and supporting proof records are filed or identified in the current record.

**27.** ORCP 27 H fallback (to the extent applicable here): if any ORCP 27 E recipient category cannot be completed on the current emergency timeline after reasonable inquiry, Movant requests targeted modification/waiver and a court-set cure schedule for supplemental notice.

**28.** To the extent any objection is filed, Movant requests hearing management consistent with ORCP 27 G and Chapter 125 scheduling authority.

**29.** In the alternative, if the Court finds any ORCP 27 branch not procedurally applicable in this probate posture, Movant requests the same appointment/appearance relief under the Court's Chapter 125 protective-case management authority.

## V. EXHIBIT REFERENCES (GLOBAL NUMBERING)

**30.** This motion presently relies on Exhibit 1 (scanned signed order source), Exhibit 2 (current petition posture), and the Short-Form Declaration of Benjamin Barber (Threshold Relief), with supplemental declaration materials as needed for additional chronology/detail.

**31.** Movant requests leave to supplement with certified docket/order materials (including Exhibits 8-10 and certified signed-order record support for 25PO11530) as soon as they are received.

## VI. RESERVATION

**32.** Movant reserves amendment rights after receipt of certified docket and complete order history.

## VII. LIMITATIONS AND REQUESTED HANDLING

**33.** Any asserted prior-GAL continuity from related matters is offered conditionally and should not be treated as established unless certified records are lodged.

**34.** The Court may grant tailored GAL appointment/appearance relief on current Chapter 125 conflict-management needs shown in this record.

34A. If the Court enters only interim GAL relief at this stage, Movant requests that the order set a short deadline for any supplemental suitability submissions and preserve a neutral-GAL fallback.

**35.** This motion does not request treatment of uncertified overlap context as a final preclusion finding or final authority adjudication.

**36.** Any request in this motion to align with prior GAL history is presented under Rule ID R-GAL-01 and is conditioned on certified prior order/minute support.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

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# MOTION TO LIMIT ISSUES PENDING THRESHOLD ISSUE-PRECLUSION RECORD OR, IN THE ALTERNATIVE, TO DISMISS TO THE EXTENT PRECLUSION IS ALREADY ESTABLISHED

Movant, Benjamin Barber, moves to limit the case to a threshold issue-preclusion record.

Only if and when at least one asserted issue row is fully supported by admissible certified records on a row-by-row certified-element map filed with the Court, Movant requests dismissal of specifically identified claim-elements or issue-elements shown to be precluded.

## I. REQUESTED RELIEF

**1.** Limit relitigation of overlapping authority, housing-control, service/compliance, and Section 18 relocation-duty issues unless and until the parties supply the prior-proceeding materials needed to evaluate issue preclusion.

This includes clerk-certified docket and order materials the Court deems necessary.

**2.** In the alternative, dismiss only those specifically identified claim-elements or issue-elements that the Court finds shown to be precluded by admissible prior-proceeding records on a fully completed row-by-row certified-element map.

If no row is fully completed, defer dispositive dismissal and grant non-dispositive narrowing only.

**3.** Set a focused threshold schedule or hearing limited to prior proceeding identity, issue identity, finality, party/privity, and full-and-fair opportunity.

Use one row per asserted issue as tracked in the certified-element mapping sheet.

**4.** As a non-dispositive fallback, decline to use this probate matter as a merits forum for eviction, Section 18 relocation-duty, housing-processing, accommodation, hearing-access, or related federal civil-rights issues already being litigated or pursued in the eviction and federal complaint tracks.

Allow consideration only to the extent strictly necessary to resolve guardianship-specific questions, and do not treat mere overlap itself as completed preclusion.

**5.** Award further relief the Court deems just and proper.

## II. GOVERNING LAW

**6.** Oregon issue-preclusion law bars relitigation when the identical issue was actually litigated and essential to a final decision, and preclusion is asserted against a party who had a full and fair opportunity to be heard. See Nelson v. Emerald People's Utility Dist., 318 Or 99, 104-06, 862 P2d

1293 (1993); Rawls v. Evans, 234 Or App 316, 321, 227 P3d 1200 (2010).

**7.** The issues must be identical, and the doctrine requires a prior separate proceeding rather than merely another phase of the same case. See Hayes Oyster Co. v. Dulcich, 199 Or App 43, 50, 54, 110 P3d 615, rev den, 339 Or 544 (2005); Westwood Construction Co. v. Hallmark Inns, 182 Or App 624, 631-32, 637 n 10, 50 P3d 238, rev den, 335 Or 42 (2002).

**8.** Where finality or issue identity is still disputed, threshold narrowing and stepwise record development is the safer posture until the record is complete.

**9.** Parallel pending proceedings, standing alone, do not establish completed issue preclusion; instead, they support threshold scope control to avoid inconsistent rulings, forum drift, and premature merits duplication, with any dispositive ruling limited to specifically identified issue rows that are fully supported by admissible records.

In this probate posture, ORS 125.025 and ORS 125.050 also support protective-case scope management and ORCP sequencing where needed to keep collateral merits from overtaking guardianship adjudication.

## III. CURRENT SOURCE-BACKED OVERLAP RECORD

**10.** The March 31, 2026 petition in case 26PR00641 seeks temporary and indefinite guardianship, waiver of notice, and a writ of assistance regarding Jane Kay Cortez. Exhibit 2.

**11.** The same petition seeks authority over Jane Kay Cortez's person and housing-related circumstances and identifies APS-access and possible law-enforcement transport issues as part of the requested authority structure. Exhibit 2.

**12.** The same petition also states that no guardian, trustee, health-care representative, or attorney-in-fact previously existed for Jane Kay Cortez. Exhibit 2.

**13.** The record review identifies substantial overlap concerns between the present authority request and earlier authority-related proceedings, including the signed restraining-order matter in case 25PO11530; however, final preclusion adjudication remains provisional pending a fuller prior-order and docket record. See Exhibits 8-10.

## IV. ADDITIONAL PROCEEDING OVERLAP (CONTEXT FOR THRESHOLD SCOPE CONTROL)

**14.** As described in the Short-Form Declaration of Benjamin Barber (Threshold Relief), the supplemental declarations, and overlap-status filings, the current record identifies two overlap tracks:

(a) Clackamas County Justice Court eviction-response case 26FE0586; and

(b) a District of Oregon complaint track involving HACC and Quantum with overlapping housing-process allegations.

See Short-Form Declaration of Benjamin Barber (Threshold Relief), paragraph 13; Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 21-22; Supplemental Declaration Authenticating Cross-Forum Docket/Order Records, paragraphs 5-8; and the Cross-Forum Exhibit Retrieval Metadata Sheet.

**15.** These overlap points are offered only as context for threshold scope control and issue-screening, not as independent dispositive grounds for dismissal in this motion.

**16.** The overlap materials are not offered as completed preclusion findings and do not replace certified proof of the Oregon preclusion elements.

**17.** The scanned federal complaint coversheet/complaint packet reflects a received stamp beginning "RECVD 31 MAR '26 12:57..." (trailing characters faint), but the current scan does not clearly show a filled civil action number. See Federal Coversheet Stamp Read Note (2026-04-08).

**18.** Movant files a separate notice that any clerk-relayed advisement/assignment status is offered as provisional overlap context only pending docket confirmation, and not as a substitute for admissible docket proof. See Notice of Supplemental Status: Clerk-Relayed Federal Advisement (Pending Docket Confirmation).

**19.** To the extent the present guardianship petition is used to relitigate those same housing-merits issues, threshold issue-screening and forum-narrowing are warranted to reduce inconsistent adjudication risk, even if the present record is not yet sufficient for completed issue preclusion. See Exhibit 2 and Objection to First Amended Petition for Appointment of Guardian, paragraphs 46-49.

**20.** If either the Justice Court matter or federal matter has reached a final adjudication on an identical issue, that issue may be precluded here only to the extent the Oregon preclusion elements are established on a fully supported row-by-row certified-element map by admissible records.

**21.** If final adjudication has not yet occurred, this Court should still narrow this probate matter to guardianship-specific issues and avoid becoming a parallel merits forum for pending landlord-tenant or federal civil-rights claims, without treating mere overlap itself as completed preclusion.

**22.** Any separate constitutional argument branch is reserved for supplemental memorandum only if and when that issue is directly presented for adjudication in this case.

## IV-A. RULE-ID BRANCH MAPPING

22A. For consistency with the shared deontic mapping attachments, this motion's dispositive preclusion branch is identified as Rule ID R-PI-01 (collateral-estoppel branch).

22B. Under Rule ID R-PI-01, no dispositive dismissal is requested unless the certified row-by-row element map is complete for the specific issue row at issue.

22C. Any non-dispositive overlap/scope handling requested in this motion is presented as threshold sequencing only and not as completion of Rule ID R-PI-01.

22D. To the extent collateral housing-merits scope-control is considered in this motion, that handling is non-dispositive and corresponds to Rule ID R-JN-01 as mapped in the companion scope-control filings.

22E. Any uncertified status note, oral relay, or summary chart is offered as context only and not as completed proof of a dispositive preclusion element.

## V. COMPANION PARTY-STRUCTURE BRANCH

**23.** Party-structure consequences for any housing-merits relitigation are addressed in companion scope-control filings and are included here only to explain why threshold narrowing is requested.

**24.** This probate proceeding should not be used to bypass proper party structure or to reframe eviction/housing merits against absent entities.

## VI. PROOF GATE FOR FINAL DISMISSAL (RULE ID R-PI-01)

**25.** Final dismissal still requires proof of the prior separate proceeding, the exact issue decided, finality, party/privity alignment, and a full and fair opportunity to be heard.

**26.** Movant therefore requests threshold control now, with dismissal only to the extent those elements are proven by admissible certified records on a row-specific basis under a filed certified-element map.

**27.** If the Court finds any preclusion element not yet proven on certified records, Movant requests non-dispositive relief only: issue narrowing, sequencing, and a supplementation schedule rather than merits adjudication of collateral overlap issues.

**28.** To the extent relevant docket, order, transcript, assignment, or status materials are not yet in the present admissible record, that incompleteness supports threshold control and supplementation rather than dispositive merits resolution at this stage.

**29.** As of this filing posture, if the Court determines that no asserted issue row is yet fully supported by admissible certified records, Movant requests no dispositive estoppel ruling at this time and asks the Court to enter only threshold scope-control relief.

**30.** If no asserted row is fully supported by admissible certified records at the time of ruling, Movant requests that the dispositive-dismissal branch be denied without prejudice and that only non-dispositive narrowing/sequencing relief be entered.

**31.** Before any dispositive preclusion ruling is requested, Movant will file (or identify in the current record) a row-by-row element map identifying one source cite for each required preclusion element and indicating whether each row is fully supported by admissible certified records.

31A. If, at hearing, no asserted row is fully supported by admissible certified records, Movant affirmatively requests no dispositive dismissal ruling and seeks only non-dispositive narrowing/sequencing relief without prejudice.

## VII. PARTY-STRUCTURE SAFEGUARD IF COLLATERAL MERITS ARE PRESSED

**32.** To the extent any party seeks to adjudicate Section 18 relocation-duty, eviction-merits, or housing-liability issues inside this probate case, the Court should require proper party structure under ORCP 29 before allowing those merits to proceed.

**33.** If joinder of HACC and Quantum is not feasible, ORCP 29B factors support shaped relief rather than collateral merits adjudication in their absence: prejudice risk, ability to reduce prejudice by limiting issues, adequacy of a narrowed judgment, and adequacy of alternative remedies in the eviction/federal tracks.

**34.** ORCP 22C third-party practice is derivative-liability focused and is generally not satisfied by allegations that absent entities are primary actors in a separate housing dispute; absent a clean

liability-over theory, this probate case should remain narrowed to guardianship issues.

**35.** These party-structure safeguards are requested to prevent inconsistent obligations and forum drift, not to expand this probate case into a full housing-liability adjudication.

## VIII. EXHIBIT REFERENCES (GLOBAL NUMBERING)

**36.** This motion relies primarily on Exhibit 2, the Short-Form Declaration of Benjamin Barber (Threshold Relief), and Exhibits 8-10 as the threshold preclusion record set (current-case docket posture, prior signed-order record, and hearing/notice record).

**37.** This motion additionally references overlap materials for 26FE0586 and the federal HACC/Quantum track as context for threshold scope control only, and not as substitute proof for dispositive preclusion elements.

**38.** Any internal element-to-evidence readiness matrix is offered, if at all, only as an organizational aid; admissible exhibits and certified records control.

## IX. RESERVATION

**39.** Movant reserves the right to supplement with clerk-certified docket printouts, signed orders, transcripts, and proceeding-status records for the Justice Court and federal tracks.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

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# MOTION FOR ORDER TO SHOW CAUSE RE: SOLOMON BARBER'S POST-ORDER HOUSING INTERFERENCE AND POSSIBLE VIOLATION OR EVASION OF THE ORIGINAL RESTRAINING ORDER

Movant, Benjamin Barber, requests an Order requiring Solomon Barber to appear and show cause why the Court should not find that he violated, evaded, or improperly worked around the original restraining-order framework by continuing to interfere in housing matters involving Jane Kay Cortez, Benjamin Barber, and the Housing Authority of Clackamas County (HACC).

This filing is offered as an alternative show-cause theory and should not be treated as a concurrent duplicate of the primary show-cause motion unless the Court requests consolidated handling.

## I. REQUESTED RELIEF

**1.** Issue an Order to Show Cause requiring Solomon Barber to appear on a date certain.

**2.** Require Solomon Barber to explain why his post-order conduct concerning Jane Cortez's housing, household composition, voucher, relocation, or lease matters did not violate or evade the original restraining-order framework.

**3.** Require Solomon Barber to explain why his later guardianship filing includes detailed housing allegations, household address information, and occupancy / voucher assertions concerning Jane Cortez and Benjamin Barber.

**4.** Enter appropriate threshold remedial orders, including record-completion directives and only such noninterference or corrective relief as the Court finds directly supported by admissible evidence.

4A. For efficient handling, Movant requests that this alternative track be held in reserve unless the Court directs consolidated treatment with the primary show-cause motion.

## II. GROUNDS

**5.** Exhibit 1 reflects that the original restraining order against Solomon Samuel Barber was granted and states that no further service was necessary because Respondent appeared in person before the court.

**6.** Exhibit 1 also reflects operative restraint language, including interference-related restrictions and an order to follow the petitioner's guardian or conservator.

**7.** The same packet supports that Benjamin Barber appeared in the guardian ad litem / guardian petitioner role for Jane Kay Cortez in that matter.

**8.** The later Solomon text record supports a self-help service / enforceability posture inconsistent with straightforward compliance: after order-image MMS transmissions in the March 10, 2026 thread, Solomon stated, "Oh I understand, I'm just not incentivized to cooperate," and then, "Once I get served and it goes into effect, I will comply ... But it is not in effect."

**9.** The present guardianship petition filed by Solomon includes detailed allegations about Jane's subsidized housing, occupancy, voucher status, household address, and Benjamin Barber's housing role.

**10.** The March 23, 2026 declarations of Benjamin Barber and Jane Cortez each support that Charley Skee explained in substance that Benjamin had been taken off the lease because Benjamin's brother and stepfather had been emailing documents to HACC, and that the situation continued until staff sorted through those materials.

**11.** The "JC Household" chain also supports an earlier county-notice point on December 2, 2025, when Benjamin emailed Ashley Ferron and copied Charley Skee, HACC Public Housing Management, and HACC Relocation in the same dispute stream, and by March 17, 2026 HACC had again received direct written notice from Benjamin asking whether HACC was still in communication with parties who had restraining orders against them in the courts.

**12.** In context, that March 17 warning was made during an active dispute over voucher issuance, relocation, lease status, and housing administration, and is best read as notice that continued communication with Solomon or other restrained parties was interfering with Benjamin Barber's tenant rights and the household's housing process.

**13.** The original stored Julio order packets strengthen that context. The case records include a granted Benjamin-v.-Julio EPPDAPA order and a granted Jane-v.-Julio EPPDAPA order, both tied to the same residence and protective framework, which shows that household-composition and housing-control disputes were already being formalized in court before the later HACC lease-removal sequence.

**14.** The case records also include a scanned "Abuse Protective Order Certificate of Service" form, but targeted OCR shows it is a blank form only. That means the source record is stronger on operative order existence than on completed service paperwork.

**15.** The current record supports a narrower elimination-based inference. Benjamin did not request his own removal from the lease, and Jane did not request Benjamin's removal.

**16.** The "JC Household" chain reflects internal inconsistency that warrants explanation: on January 12, 2026 HACC first wrote that Julio needed paperwork unless court documents were submitted, later wrote that Julio and Jane were the only approved occupants, and also wrote that effective January 1, 2026 Benjamin was no longer listed based on "internal review" and "court documentation currently on file."

**17.** The broader sequence also includes a February 13, 2026 HACC 30-Day Notice of Termination addressed to Julio Regal Florez-Cortez, and the March 23 declarations attribute Benjamin's removal, in substance, to outside document flows from Benjamin's brother and stepfather.

**18.** Jane Cortez's separate April 8, 2026 declaration adds first-person support that officers came to pick her up and take her to the doctor, that she understood Solomon was trying to take her away without her approval and without even allowing her to take her purse, ID, or money, and that the household had remained stuck because housing had not cooperated in processing a two-bedroom

move path.

**19.** The current record does not yet identify a complete authority-document chain (including any power-of-attorney instrument) or a direct HACC source note identifying who submitted the controlling materials.

**20.** On the present evidentiary record, these facts support threshold show-cause inquiry and targeted production rather than final factual findings on responsibility.

20A. Before any contempt finding is requested on this branch, Movant will provide a clause-specific proof map identifying the exact quoted order term(s) relied on and the exact allegedly conflicting act(s), with date/time/source citations.

20B. On this branch, Movant does not request any final attribution finding that Solomon caused a specific HACC lease/voucher action unless and until direct actor-source records are produced or admitted.

## III. PROOF POSTURE

**21.** Movant does not ask the Court to assume that a direct HACC source record already states that Solomon asked HACC to remove Benjamin from the lease.

**22.** The present record instead supports a serious interference question through the combination of:

**a.** the granted order and in-person-appearance language;

**b.** the parallel granted Julio protective-order packets showing the same residence and household-control conflict had already been formalized in court;

**c.** Solomon's later noncompliance posture;

**d.** the housing-specific allegations in Solomon's guardianship petition;

**e.** the Skee declaration testimony; and

**f.** HACC notice materials, including the March 17 tenant-rights warning that continued communication with restrained parties was interfering with the household's housing process; and

**g.** Jane Cortez's own April 8, 2026 declaration describing the forced pickup / hospital-transport incident and housing's failure to cooperate in completing a two-bedroom relocation path.

**23.** The current record also supports a conservative delay-allocation distinction: the clearer direct processing delay belongs to the Quantum / Blossom / HACC branch (packet/tax-material trail open by December 2, 2025; January 26, 2026 acknowledgment that Quantum had not forwarded intake; first clear voucher marker March 19, 2026), while the clearer direct lease-disruption period appears in the Solomon branch (Benjamin removed effective January 1, 2026; removal confirmed January 12, 2026; restoration marker February 4, 2026).

**24.** The direct HACC actor-identification record remains a live production target and may require subpoena or other compelled production.

**25.** The current record does not yet prove what, if any, authority document Solomon was invoking or what he may have signed in Jane's name.

25A. Source duty/prohibition anchors (Exhibit 1): the order packet reflects in-effect/no-further-service language, including "The order is now in effect," "The Restraining Order you have received is in effect and remains in effect until the court changes or terminates it," and "No further service is

necessary because Respondent appeared in person before the court," together with operative restraint/interference language.

25B. Trigger posture: once the order was in effect and respondent appeared in person in that matter, compliance and noninterference duties were active unless modified by the issuing court.

25C. Alleged conflicting acts offered for threshold show-cause review:

**a.** post-order conditional-compliance text posture quoted in paragraph 8;

**b.** housing-control assertions in later guardianship filings quoted in paragraph 9;

**c.** asserted household/lease-disruption sequence reflected in paragraphs 10-18 and 23.

25D. Requested remedy sequence on this branch is threshold-only unless and until clause-specific contempt predicates are proven on admissible evidence.

25E. If direct actor-source records are not available by hearing, Movant requests record-completion directives and noninterference sequencing only, without final contempt attribution findings on housing-causation allegations.

## IV. LEGAL AUTHORITY

**26.** ORS 33.055 authorizes remedial-contempt proceedings and order-to-appear process where violation of a court order is alleged.

**27.** ORS 33.075 authorizes compelled appearance mechanisms after nonappearance on a served order to appear.

**28.** ORS 33.105 authorizes remedial sanctions upon proof of contempt.

**29.** This motion does not request ORCP 17 sanctions in this filing branch; any filing-misconduct sanctions theory, if later pursued, should proceed by separate noticed briefing with identified legal vehicle and evidentiary predicates.

## V. REQUESTED HEARING STRUCTURE

**30.** Set an expedited show-cause hearing.

**31.** Require pre-hearing filing of the operative original order packets and any clerk-certified records the parties possess concerning the original Solomon matter, the Julio protective-order packets, and the related Ashley Ferron protective filings.

**32.** Permit targeted testimony on:

**a.** order language and scope;

**b.** Solomon's notice and later text posture;

**c.** the housing-specific allegations in Solomon's guardianship petition;

**d.** the March 23 Skee-hearing declarations;

**e.** the January 12, 2026 "JC Household" chain, including the inconsistent HACC household-status record, the "internal review" / "court documentation currently on file" statement, and the February 13, 2026 Julio termination notice;

**f.** HACC notice of restraining-order concerns;

**g.** Jane Cortez's April 8, 2026 first-person account of the forced pickup / transport event and housing noncooperation;

**h.** the elimination-based lease-removal inference and any claimed-authority theory; and

**i.** any later-produced HACC source materials.

**33.** If the Court finds the direct HACC actor-identification record incomplete, limit the hearing to threshold show-cause review and record-completion directions rather than final contempt findings.

33A. Before any contempt finding or remedial sanction order on this branch, require a filed and served clause-specific proof map identifying each allegedly conflicting act and the exact quoted order term offered as violated.

33B. No contempt finding or remedial sanction order on this branch should be entered unless the responding party had notice and an opportunity to address the clause-specific proof map and cited records.

33C. No final attribution finding that Solomon caused a specific HACC lease/voucher/household-status action should be entered on this branch without direct actor-source proof in the admissible record.

## VI. EXHIBIT REFERENCES

**34.** This motion presently relies on the global exhibit set and declaration materials filed with this packet, including Exhibits 1, 2, 3, 4, 5, and 7, with the Short-Form Declaration of Benjamin Barber (Threshold Relief) as the primary threshold declaration and supplemental declarations for added chronology/detail.

**35.** Movant requests leave to supplement with HACC source records, clerk-certified court records, and supplemental Exhibits 8, 9, and 10 once produced.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

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| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# MOTION FOR ORDER TO SHOW CAUSE RE: RESPONDENT SOLOMON BARBER'S COMPLIANCE WITH OPERATIVE ORDER TERMS

Movant, Benjamin Barber, requests an Order to Show Cause requiring Solomon Barber to appear.

Movant asks for an explanation of why relief should not be entered based on alleged noncompliance with operative order terms and related compliance-path disputes.

This filing is presented as the primary show-cause track; the companion alternative show-cause motion should be treated as non-duplicative unless the Court requests consolidated handling.

## I. REQUESTED RELIEF

**1.** Issue an Order to Show Cause requiring Solomon Barber to appear on a date certain.

**2.** Require Solomon Barber to explain his compliance with the operative restraint terms reflected in Exhibit 1 after in-person appearance and notice that the order was in effect, including any asserted basis for noncompliance.

**3.** Require Solomon Barber to explain his compliance posture after notice of an in-effect order and available hearing path.

3A. Require Solomon Barber to show cause why he sought, caused, or used writ-of-assistance process for Jane Kay Cortez without first ensuring a clean underlying order/notice predicate on the present record, including why notice of that writ process was not served on Benjamin Barber before attempted coercive execution.

3B. Require Solomon Barber to identify the specific order, filing, and service facts he contends authorized any coercive writ branch at the time that branch was pursued.

**4.** Enter only those remedial orders supported by proven violation of identified order terms, including (as warranted by the evidence) compliance-clarification directives, deadline-based cure directives, and compensatory remedial relief authorized by statute.

**5.** Require a clause-specific proof map before any contempt finding: the movant must identify the exact order term (quoted text + exhibit cite) and the exact allegedly conflicting act (date/time/source cite).

**6.** At this filing stage, movant seeks show-cause sequencing based on the currently mapped terms in paragraph 28(a)-(b) and does not request final contempt findings on any unmapped term.

6A. For efficient handling, Movant requests that this motion be treated as the primary show-cause track and that the companion alternative show-cause motion be held in reserve unless the Court directs

consolidated treatment.

## II. GROUNDS

**7.** The current record reflects notice-related, order-status, original-matter opposition-path, and compliance-path disputes requiring immediate court supervision.

**8.** Exhibit 1 reflects that on November 20, 2025, the Court entered an Elderly Persons and Persons with Disabilities Abuse Prevention Act restraining order against Solomon Samuel Barber and included operative restraint and compliance terms.

**9.** Exhibit 1 further reflects order language that no further service was necessary because Respondent appeared in person, creating a concrete enforceability anchor for subsequent compliance analysis.

**10.** Exhibit 1 also reflects attached notice pages stating that the order was in effect and explaining the 30-day hearing process for opposing the order in the original matter.

**11.** Movant alleges Solomon Barber later took positions inconsistent with compliance obligations reflected in the in-effect order and the available opposition process, including service-evasion posture reflected in the current record.

**12.** Threshold show-cause review is necessary to preserve proceeding integrity and ensure compliance-path issues are addressed in the proper remedial posture, without requesting premature punitive findings.

**13.** The preserved March 10, 2026 Google Voice thread reflects order-image MMS transmissions from Movant at approximately 10:36:48-10:36:49 AM Pacific Time.

It is followed by Solomon's statement at approximately 10:39:26 AM Pacific Time, "Oh I understand, I'm just not incentivized to cooperate," and then his additional statement at approximately 10:45:53 AM Pacific Time, "Once I get served and it goes into effect, I will comply with whatever the order states. But it is not in effect."

This sequence is relevant because it can be compared directly against the order packet's in-effect and in-person-appearance language.

**14.** The April 3-4, 2026 counsel email chain shows service-labeled transmission to Alex Bluestone and counsel's response that he did not accept service on behalf of his client while confirming representation in the Jane Cortez guardianship matter; the preserved chain also includes a same-day FedEx receipt image and delivery-tracking identifiers consistent with physical transmittal to counsel. This supports same-matter notice/knowledge while preserving formal service-validity issues for Court determination. See Supplemental Declaration Re: Authentication of Google Voice Transcript and SMS Email Records and Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 11-12.

**15.** The newly retrieved April 8, 2026 continuation of that same thread further shows counsel raising a service/proof objection concerning Movant's guardian-ad-litem effort and stating that he would contact the court to request an expedited hearing to address the issues raised. This is relevant to same-matter notice and procedural posture, but is not presently offered as proof that the court actually set or held such a hearing. See Supplemental Declaration Re: Authentication of Google Voice Transcript and SMS Email Records and Declaration of Benjamin Barber (Court-Safe Trimmed), paragraph 11.

15A. The current record also includes writ-of-assistance process in this probate matter that Movant contends was used to attempt involuntary pickup/transport of Jane Kay Cortez before a fully clean predicate notice/order record was established for that branch.

15B. Movant further contends that, despite prior notice to Solomon's counsel of threshold preclusion and service-defect issues in this same matter, filings and writ-seeking conduct continued without curing those threshold defects.

15C. Movant asks the Court to require Solomon Barber to explain: (a) the exact legal and factual predicate he relied on for writ-of-assistance process; (b) what service/notice steps were taken on Benjamin Barber for that writ branch; (c) why any known restraining-order overlap and prior notice of collateral-estoppel objections did not result in narrower, noncoercive filing posture first; and (d) why the resulting filing posture should not be treated as willful blindness to restraining-order and service-sequencing concerns.

**16.** Movant also states from personal knowledge that on April 9, 2026, a Clackamas County sheriff deputy served restraining-order papers on Solomon Samuel Barber in person, and Movant captured a smartphone photo of that event (file: "Solomon Service.HEIC").

Movant has prepared supplemental service-return notice/declaration filings for lodging of both the photo exhibit and any official return/proof document.

Until an official return is lodged and accepted, Movant offers the personal-observation/photo evidence as supplemental service proof context and does not request a formal service finding based solely on that point.

Movant will file any sheriff return/proof document promptly after receipt before requesting any service-dependent enforcement finding tied to that event.

**17.** This motion therefore seeks an order-to-appear and explanation pathway first, with any sanction remedy limited to what is later proven by admissible order-text, notice, and compliance evidence.

**18.** The requested show-cause sequencing does not depend on the April 9, 2026 sheriff-service event; that personal-observation/photo evidence is offered as supplemental context only unless and until the official return is lodged.

**19.** The Short-Form Declaration of Benjamin Barber (Threshold Relief), together with supporting supplemental declarations and attached records, identifies the operative order text, case linkage, and service/effect-position events asserted as the predicate for show-cause relief.

19A. For consistency with shared deontic attachments, this motion's primary compliance branch is Rule ID R-SC-01; the no-further-service/appearance anchor branch is Rule ID R-SC-02; and the sheriff-service formal-return gate branch is Rule ID R-SVC-01.

19B. Any uncertified status note, oral relay, or summary chart is offered as context only and not as completed proof for a contempt finding or final service-sufficiency determination.

## III. LEGAL AUTHORITY

**20.** ORS 33.055 authorizes remedial-contempt proceedings and order-to-appear process when a party is alleged to have violated a court order.

**21.** ORS 33.075 authorizes compelled appearance mechanisms only if a court-issued order to appear is served and then not obeyed; Movant cites this statute as a sequencing branch for later use only if

that predicate is established.

**22.** ORS 33.105 authorizes remedial sanctions upon proof of contempt.

**23.** This motion does not seek ORCP 17 sanctions in this filing.

**24.** This motion does not seek punitive contempt in this filing; any sanction branch requested here is limited to remedial, evidence-based relief tied to proven violation of a specific court-order term shown in the admissible record.

**25.** This motion also does not request a dispositive collateral-estoppel dismissal ruling; any preclusion-dispositive branch remains in the separately filed threshold preclusion motion and only to the extent supported by admissible records.

25A. If the Court finds legally deficient writ-related filing conduct after notice/opportunity to be heard, Movant requests that any filing-misconduct sanction path be set by separate briefing order identifying the specific legal vehicle and evidentiary predicates.

## IV. DUTY / TRIGGER / BREACH / REMEDY MAP (RULE IDS R-SC-01, R-SC-02, R-SVC-01)

**26.** Source duty/prohibition:

**a.** Exhibit 1/1A reflects in-effect language, including: "The order is now in effect." and "The Restraining Order you have received is in effect and remains in effect until the court changes or terminates it."

**b.** Exhibit 1/1A also reflects: "No further service is necessary because Respondent appeared in person before the court."

**27.** Trigger event:

**a.** The duty to comply or seek court relief was triggered when the order was entered and remained in effect.

**28.** Alleged breach events (clause-level map):

**a.** Source term 1 (in-effect): the quoted in-effect language identified in paragraph 26(a).

**b.** Source term 2 (service/appearance): the quoted no-further-service language identified in paragraph 26(b).

**c.** Claimed conflicting act 1: March 10, 2026 statement, "Oh I understand, I'm just not incentivized to cooperate."

**d.** Claimed conflicting act 2: March 10, 2026 statement, "Once I get served and it goes into effect, I will comply... But it is not in effect."

**e.** Claimed legal significance: the quoted statements are offered as evidence of a conditional-compliance posture inconsistent with the in-effect/no-further-service terms reflected in Exhibit 1.

**f.** Before any contempt finding, Movant will identify each additional operative restraint term (if any) allegedly violated, quote that term, and map it to the exact act/date/source relied on.

**29.** Paragraphs 26 through 28 are offered as the initial clause-specific map for ORS 33.055 notice purposes; Movant will supplement only if additional order terms are later placed at issue.

**30.** Requested remedy path:

**a.** Show-cause appearance and compliance explanation under ORS 33.055.

**b.** If contempt elements are proven, remedial sanctions under ORS 33.105.

**c.** If and only if a served order to appear is later not obeyed, Movant may seek ORS 33.075 compelled-appearance mechanisms by separate request or hearing branch.

**d.** No ORCP 17 sanctions are requested in this filing branch.

30A. Rule-ID gate summary:

**a.** R-SC-01: clause-specific proof map + notice/opportunity to respond before any contempt finding;

**b.** R-SC-02: if notice/appearance anchor is contested, resolve on certified service/appearance record;

**c.** R-SVC-01: no final service-sufficiency finding requested on photo-only support without official sheriff return.

## V. REQUESTED HEARING STRUCTURE

**31.** Set an expedited show-cause hearing.

**32.** Require pre-hearing filing of clerk-certified docket and operative orders.

Require filing of proof of service for any issued order to appear before any ORS 33.075 compelled-appearance branch is requested.

If any such proof document is not yet available by hearing set date, set a short supplemental filing deadline and limit hearing relief to non-enforcement threshold sequencing until the document is filed.

32A. No service-dependent enforcement finding under Rule ID R-SVC-01 is requested unless and until the official sheriff return/proof-of-service record is filed.

**33.** Permit targeted testimony on notice, appearance history, original-matter opposition path, and any proven collateral interference sequence.

33A. Include targeted testimony and record submissions on writ-of-assistance predicate sequence, including who requested the writ, what underlying order and notice predicates were presented, and what notice/service steps were taken on Benjamin Barber before attempted execution.

**34.** Require parties to identify, before hearing, the exact order/date/event each side contends controls the original-matter opposition / noncompliance issue.

**35.** Require the movant, before hearing, to file a one-page clause-specific table mapping each alleged conflicting act to the exact quoted order term offered as violated.

**36.** Sequence hearing relief as: (a) appearance/order explanation, then (b) violation findings if proven, then (c) remedial sanctions only if statutory predicates are met.

## VI. EXHIBIT REFERENCES (GLOBAL NUMBERING)

**37.** This motion presently relies on Exhibits 1 and 1A, together with the Short-Form Declaration of Benjamin Barber (Threshold Relief), supplemental declarations authenticating communication records, and related supporting declarations filed with this packet.

**38.** Movant requests leave to supplement with certified notice/appearance/preclusion records (Exhibits 8, 9, and 10) immediately upon receipt.

**39.** If useful to the Court, Movant can provide an organizational appendix summarizing exhibit status; however, admissible exhibits and certified records control.

**40.** Any internal element-to-evidence readiness matrix is offered, if at all, only as an organizational aid; admissible exhibits and certified records control.

## VII. RESERVATION

**41.** Movant reserves amendment rights after receipt of clerk-certified docket and complete service/appearance record.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# LONG-FORM BACKGROUND DECLARATION OF BENJAMIN BARBER (CONTEXT APPENDIX; NON-DISPOSITIVE WITHOUT INDEPENDENT PROOF MAPPING)

I, Benjamin Barber, declare as follows:

**1.** I am over 18 years of age and competent to testify to the matters stated in this declaration.

**2.** I submit this declaration as a long-form context and source-identification appendix for the motion set.

**3.** I make this declaration based on personal knowledge of my own actions and communications and on my review of attached records; where a point remains disputed or incomplete, I identify it as provisional pending additional admissible support.

**4.** Where I refer below to "Exhibit A-*" or "Exhibit B-*" labels, I am referring to the exhibit labels assigned in the filed exhibit-letter schedule for this packet.

4A. For threshold and dispositive requests, the companion short-form threshold declaration is the primary filing-facing declaration. This long-form declaration is not offered as a stand-alone dispositive evidentiary vehicle unless a separate order or motion branch expressly adopts it for that purpose.

## A. RECORD ANCHORS

**5.** Exhibit 1 reflects restraining-order grant/in-effect language dated November 20, 2025.

**6.** Exhibit 2 reflects guardianship filing/notice timeline entries associated with case 26PR00641, including March 31, 2026 and April 2, 2026 references.

**7.** Exhibit 3 reflects structured message/transcript event extraction used in current analysis.

**8.** The records maintained for this matter also contain original stored source scans of related Julio protective-order matters, including a granted Benjamin-v.-Julio order and a granted Jane-v.-Julio order tied to the same residence and protective framework, as well as a scanned blank abuse-protective-order certificate-of-service form.

## B. SHOW-CAUSE SUPPORT STATEMENTS (PROVISIONAL WHERE NOT YET CERTIFIED)

**9.** Exhibit 1 reflects a November 20, 2025 restraining order against Solomon Samuel Barber with operative restraint/compliance terms and language stating no further service was necessary because Respondent appeared in person.

**10.** Based on Exhibits 1 and 3, I understand there is record support for notice and compliance-path disputes involving Solomon Barber.

**11.** In the preserved March 10, 2026 Google Voice thread, I sent order-image MMS messages at approximately 10:36:48-10:36:49 AM Pacific Time, and Solomon then responded at approximately 10:39:26 AM Pacific Time, "Oh I understand, I'm just not incentivized to cooperate."

**12.** In the same thread, Solomon later stated at approximately 10:45:53 AM Pacific Time: "Once I get served and it goes into effect, I will comply with whatever the order states. But it is not in effect," which I offer as a direct statement of his service/effect position.

**13.** The April 3-4, 2026 counsel email chain reflects service-labeled transmission to Alex Bluestone and counsel's response that he did not accept service on behalf of Solomon while confirming representation in the guardianship matter; the preserved chain also includes a same-day FedEx receipt image and delivery-tracking identifiers consistent with physical transmittal to counsel.

**14.** The stored Julio order scans strengthen my understanding that household-control and residence disputes at 10043 SE 32nd Ave were already being formalized in court before the later HACC lease-removal sequence.

**15.** The stored "Abuse Protective Order Certificate of Service" scan appears to be a blank service form only, not a completed proof of service.

**16.** The current filed and lodged records now also include a probate-side writ of assistance directed to law enforcement in case 26PR00641. From my review of that writ, I understand it purported to authorize officers to accompany Solomon Barber as temporary guardian, enter Jane Kay Cortez's residence forcibly if necessary, locate her within Oregon, and transport her to Providence Milwaukie Hospital or another nearby hospital.

**17.** From my personal knowledge and review of that writ, I understand Solomon Barber was attempting to use court process to remove and transport Jane Kay Cortez in coordination with law enforcement. I personally viewed that attempted use of the writ as an effort to take her away without her approval.

**18.** Jane Kay Cortez's own separate April 8, 2026 declaration is consistent with that understanding. In that declaration, she states in substance that police came to pick her up and take her to the doctor, that she was not even allowed to take her purse and ID, that Solomon was trying to take her away without her approval, and that housing had kept us stuck by not cooperating in processing a two-bedroom place to live.

**19.** I request the Court require appearance and explanation regarding compliance posture and any assertion that an in-effect order was unenforceable absent additional service.

**20.** To the extent Solomon's later petition claims that I interfered with APS evaluation or police welfare checks, my position is that this allegation omits critical context: on the very day Solomon was planning to have APS come to the house, my mother Jane Kay Cortez was actually at the Clackamas County courthouse seeking a restraining order against Solomon Samuel Barber. From my personal knowledge, that same-day protective-order context is relevant to evaluating motive and sequence. I offer this as context only and not as a stand-alone dispositive finding.

**21.** To my personal knowledge, Julio Regal Florez-Cortez cannot read or write in any language.

**22.** I did not request my own removal from the lease, and Jane Kay Cortez did not request my removal from the lease.

**23.** Because Julio could not read or write in any language, I did not understand him to be independently generating written housing demands, packet corrections, or asserted-authority paperwork during the same period that HACC said outside documents were affecting household composition.

**24.** Jane Kay Cortez has raised me continually since my birth. Solomon Samuel Barber was not raised by Jane Kay Cortez.

**25.** I have been living with Jane Kay Cortez for more than six years.

**26.** Solomon's later guardianship petition materially conflicts with that household history because it describes me as someone who "was incarcerated until recently" and who "has begun living with the Respondent." From my personal knowledge, that description is inaccurate or materially misleading because I had already been living with Jane Kay Cortez for more than six years.

**27.** During that period, I have also lived in the household with Julio and Jane Cortez's dog Sarah and have personally worked with Sarah on basic training and socialization.

**28.** From my personal observation and training work, Sarah changed from an unmanageable dog into a mostly obedient and socialized dog that can be given commands to move, stay, and lie down, and that generally does not react to other people or dogs so long as they are not inside our home.

**29.** The records in this matter include a photo labeled "sarah dog.JPG," which I can identify as Sarah.

**30.** I have had a plan for Jane Kay Cortez and me to live elsewhere, and I understood from HACC's notices, relocation communications, and voucher-processing record that our household was supposed to receive a lawful replacement-housing path through the Section 18 relocation process.

**31.** From my personal knowledge and review of the records in this matter, I understood that HACC was representing that our household would receive relocation and comparable replacement-housing assistance before displacement was treated as complete, and that HACC's own written housing record represented a concrete replacement-housing and voucher path for our household.

**32.** I further understood from Kati Tilton's March 26, 2026 written summary of the available housing options and required next steps that HACC was representing April 30, 2026 as the deadline framework for the available move paths. That written summary stated that all available options required a move by April 30, including porting to Multnomah County, using a Tenant Protection Voucher in Clackamas County, or moving to an assigned PBV unit. I understood that communication to mean that a completed move remained possible by April 30, 2026 if the offered relocation paths were actually processed and administered as HACC had described.

**33.** I also understand from the records in this matter that Housing Authority of Clackamas County and Quantum Residential did not properly process the Clackamas County replacement-housing path, including the Blossom / Hillside Manor / Parkside Heights path that had already been submitted or later updated for our household, and that HACC later acknowledged in writing that the intake packet had been left with Quantum Residential staff at the Hillside Manor leasing office but had not been provided onward to HACC. From my perspective, that nonprocessing prevented the implementation of the relocation path HACC had already directed us to use.

**34.** I also attempted months ago to port the voucher to Multnomah County under the VAWA / safety-transfer path, including for use through Home Forward and at apartments such as Waterleaf and the Vera / Brighthaven Communities path. From my personal knowledge and review of the records in this matter, Waterleaf was already a live option by December 2025, HACC knew by January 12, 2026 that Waterleaf had the signed application and needed voucher information, and HACC later acknowledged that our household had chosen to port to Multnomah County.

**35.** Even so, from my personal knowledge and review of the records in this matter, I was not able to actually leave Clackamas County through that Multnomah County port-out path because the needed voucher and portability administration were not completed and no final contract or lease was materialized for me to sign through the Home Forward / Brighthaven / Waterleaf side. In that sense, I understand the record to show that I was prevented from porting out in practice, even though the path was discussed and nominally open on paper.

**36.** After the March 19, 2026 voucher-issuance marker, I also submitted a separate application to Parkside Heights on March 29, 2026, and copied that submission to Kati Tilton and HACC Relocation. In the preserved March 30, 2026 reply, Parkside Heights thanked me for submitting the application and stated that the 2-bedroom units in Building A were still under construction and had an estimated occupancy at the end of April. From my understanding of that reply together with HACC's March 26, 2026 written options email requiring a move by April 30, Parkside Heights was being presented to me as part of the same April 30 move-out framework.

**37.** On April 9, 2026, I then received a further preserved email from Parkside Heights Manager Karen Grisso stating that the screening had come back and that both Jane Kay Cortez and I had passed. In that same email, she stated that the next step was to schedule a time the following week for us to complete tax-credit paperwork. She also requested Jane's current Social Security award letter and my last four paystubs.

**38.** I replied in substance that I did not really have ordinary paystubs and that I had been told those were less important because I was serving as a live-in care aide for Jane Kay Cortez. Parkside then replied that it had not been aware that I was the live-in aide, stated that a live-in aide does not need to provide income documents, and said it would double check with HACC on what was needed. In the same exchange, Parkside proposed an April 14, 2026 appointment at 11:00 a.m. to continue the paperwork process.

**39.** From my personal knowledge, that April 9 Parkside sequence showed real progress in the Parkside path, but it still did not amount to a completed move or a final contract or lease that had been materialized for my signature. Instead, as of that date the Parkside path had advanced to screening approval, tax-credit paperwork, and further HACC-linked document clarification.

**40.** From my personal knowledge, I fulfilled the relocation-side tasks that were assigned to me, including supplying applications, packet materials, and follow-up communications for the available paths. The failure to complete the move did not result from my refusal to participate. It resulted from the fact that I was still waiting on one side or the other to materialize an actual contract or lease for me to sign, whether through the Clackamas County side involving Housing Authority of Clackamas County and Quantum Residential / Parkside Heights / Blossom, or through the Multnomah County side involving Home Forward and Brighthaven / Vera / Waterleaf-related housing options. To the extent more detailed intake, receipt, forwarding, or deficiency records

existed within those housing processes, those records were not records I controlled and instead would have been maintained by the housing entities handling those paths.

**41.** Jane Kay Cortez's April 8, 2026 declaration is also consistent with that housing-delay understanding, because she separately states that housing had not given us a two-bedroom apartment or house to live in, that we had been stuck for a long time, and that housing had not been cooperating or doing the paperwork needed to complete that move path.

**42.** In the alternative, Jane Kay Cortez and I also had a backup move plan centered on the South Waterfront area in Portland, including Waterleaf, which the current records show was being pursued during the same December 2025 to March 2026 relocation period. That backup-plan appendix is reflected in Exhibits B-1 through B-14.

**43.** From my personal knowledge and review of the records in this matter, that South Waterfront / Waterleaf plan was important because OHSU's Center for Health and Healing and related rehabilitation resources, including the materials reflected in Exhibits B-2 and B-8 through B-12, offered an environment where Jane Kay Cortez could do exercise and aquatic therapy using a pool lift and other accessibility-oriented resources to help strengthen her legs with less strain on her joints.

**44.** From my personal knowledge and review of the records in this matter, that same Waterleaf plan also offered unusually strong day-to-day access advantages because of its proximity to the streetcar line and to common destinations reflected in Exhibits B-2 through B-7, including a grocery store, church, library, and medical destinations in the South Waterfront area.

**45.** From my personal knowledge, that transit access mattered because I was trying to build a realistic plan under which Jane Kay Cortez could reach basic daily destinations with less strain and greater independence, while also retaining ride-hail services such as Uber as a fallback option if needed. I further understand "lift service.pdf" ("Exhibit B-14") to show that TriMet LIFT was under budget pressure, was making service adjustments, and was encouraging use of "LIFT+" with partners like Uber as a lower-cost transportation option. I also understood that Meta smart-glasses accessibility tools, reflected in Exhibit A-6, could make hands-free visual assistance more usable in that kind of transportation setting.

**46.** From my personal knowledge, if I had been able to relocate to Waterleaf, I also intended to pursue nearby wet-lab research opportunities I had discussed with Oregon Bioscience Incubator and OTRADI, including brain organoid and stem-cell-related work. I understand the South Waterfront / Waterleaf location materials in the records for this matter, including Exhibits B-3, B-4, and B-13, to be consistent with that plan.

**47.** From my personal knowledge, those opportunities, together with the fact that much of my computer science, data science, computational law, and related technical work can be done remotely or from home, made me a particularly suitable live-in aide and caregiver for Jane Kay Cortez because I could remain available in the household while continuing productive work. My work-background appendix is reflected in Exhibits A-1 through A-17.

**48.** From my personal knowledge and review of the records in this matter, the delay chronology separates into at least two overlapping branches.

**49.** First, the clearer direct packet-processing and document-processing delay belongs to the Quantum Residential / HACC branch. The strongest current record shows that this branch began no later than

December 2, 2025, when I stated that I had completed the packet and had business-minute, amendment, and IRS-tax materials ready; was explicitly acknowledged on January 26, 2026, when HACC stated that the intake packet had been submitted to Quantum staff but not forwarded to HACC; and remained live through at least March 19, 2026, when HACC first clearly stated that a one-bedroom voucher would be issued that day. From my understanding of the timeline in the records for this matter, that Quantum / HACC packet-and-voucher delay therefore lasted approximately 107 days from December 2, 2025 through March 19, 2026. Even after HACC acknowledged the packet-routing failure on January 26, 2026, the record still reflects approximately 52 more days before the first clear voucher-issuance marker on March 19, 2026. The same record also supports an additional unresolved post-voucher delay period through at least April 9, 2026, because even after the March 19 issuance marker I was still having to submit applications such as the March 29 Parkside Heights application and was still only at the screening-approved, tax-credit-paperwork stage on April 9 rather than at a completed move. To my knowledge, any more granular internal routing, hold, or deficiency entries for that branch would have been within HACC's or Quantum's records rather than mine.

**50.** Second, the clearer direct interference and tenant-rights disruption belongs to the Solomon Samuel Barber branch. The strongest current record shows that Benjamin's lease-removal and household-composition harm became concrete no later than January 1, 2026, when HACC later treated me as removed effective that date, and was explicitly confirmed on January 12, 2026, when HACC said my removal was based on internal review and court documentation currently on file. From my understanding of the timeline in the records for this matter, the clearest direct Solomon-side disruption window is approximately 34 days from January 1, 2026 until February 4, 2026, when Benjamin had first clearly been restored to tenant status, or approximately 23 days from HACC's explicit January 12, 2026 removal confirmation until that restoration marker. I also understand the broader housing-influence window remained active through at least March 31, 2026, when Solomon's guardianship petition was still pleading detailed housing facts about Jane and me.

**51.** The record also shows a mixed-causation overlap period from approximately January 12, 2026 through March 19, 2026, or about 66 days, during which HACC was acting on changed household composition, Quantum / HACC packet failure remained unresolved, repeated document demands were still being made, and no usable voucher had yet been timely issued.

**52.** From my personal knowledge and review of the records in this matter, I do not understand the failure of that relocation process to have resulted from refusal by me or Jane Kay Cortez to participate. Instead, the record appears to reflect a clearer processing-delay branch involving Housing Authority of Clackamas County and Quantum Residential, a clearer interference and lease-disruption branch involving Solomon Samuel Barber, and overlapping causation among those outside actors during January through April 2026.

**53.** With respect to the petition's inheritance and Special Needs Trust allegations, I have maintained at all relevant times that I wanted to review any papers Solomon Samuel Barber caused my mother to sign, or purported to sign on her behalf, concerning the estate of Gerald Miller, any proposed trust, or any claimed authority over her affairs. From my personal knowledge, Solomon Samuel Barber did not produce such records to me even while asserting broad authority positions over Jane Kay Cortez's person, housing, and possible financial matters.

**54.** I have also reviewed the earlier exhibit pages preserved within the Solomon restraining-order packet. Those pages appear to show Jane Kay Cortez stating in substance that she signed papers with Sam / Solomon that she did not understand, including a paper she thought had something to do with her dad's will, and that she had put her social security number on such paperwork. That sequence is consistent with my position that any trust, inheritance, will-related, or other authority papers should have been produced and reviewed rather than withheld.

**55.** From my personal knowledge and review of the preserved March 10, 2026 text messages, Solomon also took the position that the restraining order was not enforceable unless he was personally served, even though he had already been provided a copy of the order materials. In that same posture, he was not incentivized to cooperate and did not produce the trust, inheritance, or related authority papers that I believed should have been disclosed for review.

## C. COLLATERAL-ESTOPPEL SUPPORT STATEMENTS (PROVISIONAL UNTIL CERTIFIED SUPPORT IS LODGED)

**53.** The March 31, 2026 guardianship petition seeks broad authority over Jane Kay Cortez, including residence-related circumstances, APS interface, and possible law-enforcement transport, while also stating that no prior guardian, trustee, health-care representative, or attorney-in-fact previously existed.

**54.** My earlier review of records in this matter repeatedly raised the possibility that prior authority-related proceedings or appointments may already have addressed overlapping control issues concerning Jane Kay Cortez.

**55.** I do not claim final issue preclusion has already been proven. I understand final collateral-estoppel adjudication requires proof of final decision, issue identity, party/privity, and full and fair opportunity, and that clerk-certified copies would strengthen that proof.

**56.** I request dismissal only to the extent those elements are established by admissible exhibits, and otherwise request narrowing or a threshold preclusion record before unrestricted merits litigation proceeds.

**57.** Current filed and lodged records include a Clackamas County Justice Court eviction-response track in case 26FE0586, including response, joinder, and show-cause filings involving Housing Authority of Clackamas County and Quantum Residential.

**58.** Current filed and lodged records also include a federal civil-rights complaint track naming Housing Authority of Clackamas County and Quantum Residential and alleging overlapping housing-interference and accommodation-process facts.

**59.** Preserved January 15, 2026 communications in the JC Household chain include a summary that a pro tem judge granted relief against Julio and denied Ashley Ferron protective-order relief, while treating those housing-administration complaints as outside the proper protective-order lane. I understand the exact on-record wording still should be verified through the Clackamas hearing-audio request path before it is quoted as a formal hearing statement.

**60.** Current case-tracking materials identify Ashley Ferron protective-proceeding filings 26P000432 and 26P000433 as denied.

**61.** Current records also include a scanned federal complaint coversheet/complaint packet in the District of Oregon naming Housing Authority of Clackamas County and Quantum Residential as defendants regarding overlapping housing-process facts; the top of that scanned page shows a visible dot-matrix received stamp beginning "RECVD 31 MAR '26 12:57..." (trailing characters faint in the current scan). The present scan does not clearly show a filled civil action number.

**62.** I was orally informed by a court clerk that the federal complaint, together with the in forma pauperis application, had been taken under advisement, and that Judge Mosman was identified in that clerk-relayed status update.

62A. I offer paragraph 62 only as status context for supplementation sequencing and not for the truth of any federal docket status unless and until admissible docket entries, assignment notices, or other court records are lodged.

**63.** I request leave to supplement with filed-stamped docket materials and any assignment/status records once obtained.

**64.** To the extent the current guardianship petition attempts to relitigate those same housing-merits issues, I request issue narrowing in this case and formal preclusion analysis only after admissible docket and finality records are supplied.

64A. Until then, I request only threshold scope management and not a final merits determination on those cross-forum points.

**65.** To the extent eviction merits proceed in the Justice Court track, I understand the joinder filings in the records for this matter assert that complete relief requires participation by Housing Authority of Clackamas County and Quantum Residential because of the intake, relocation, and Section 18 duty chain described there.

**66.** To the extent Solomon or related filings attempt to rely on an old ORS 163.472 conviction as if it forecloses any future constitutional challenge, I understand from the current authority note in the records for this matter that a prior conviction does not itself bar a purely prospective challenge to future enforcement. If this Court concludes that a merits determination regarding ORS 163.472 is necessary, I am prepared to provide a separate memorandum of law addressing the constitutionality of that statute for the Court's consideration.

## D. GAL SUPPORT STATEMENTS

**67.** I believe the record reflects material factual conflicts that warrant independent review for Jane Kay Cortez's interests.

**68.** I request appointment of a neutral GAL to distinguish proven facts from unproven assertions.

## E. GRAPH-ASSISTED MATERIALS

**69.** I do not offer any generated or algorithmic summary as independent proof. Any summary aid, if referenced, is offered only as an organizational aid and not as a substitute for court records, admissible exhibits, and testimony.

## F. FILING-SCOPE LIMITATION

**70.** For filing-stage relief, I request that the Court treat this long-form declaration as context and source-identification support, treat the companion court-safe trimmed declaration as the principal filing-facing declaration for threshold rulings, and not treat this long-form declaration as the primary evidentiary vehicle for dispositive threshold rulings unless specifically adopted by separate order or motion branch.

**71.** In particular, the broader narrative/background chronology in this declaration is offered to preserve context and source-identification and is not offered as an independent dispositive basis absent separate admissible proof mapping in the companion filing set.

**72.** Without limiting paragraph 71, paragraphs 16 through 69 are expressly offered as contextual chronology support and not as a stand-alone dispositive basis for threshold rulings.

**73.** I do not request dispositive relief based solely on any paragraph in this declaration that is not independently anchored to admissible exhibits, certified records, or testimony.

**74.** Where a statement in this declaration is disputed, incomplete, or offered for context only, I request that it be treated as non-dispositive unless and until the required evidentiary foundation is supplied.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____, 2026

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

## CERTIFICATE OF SERVICE

I certify that on April 8, 2026, I served true and correct copies of the following documents:

**1.** Motion for Appointment and Appearance of Guardian Ad Litem.

**2.** Motion to Dismiss Under Collateral Estoppel (Issue Preclusion).

**3.** Motion for Order to Show Cause re: Respondent Solomon Barber's Failure to Appear and Filing of Precluded Claim.

**4.** Declaration of Benjamin Barber in Support of Motions.

**5.** Exhibit Legend and Exhibits.

on the following person(s), with the exact method/date/proof reference stated below:

**1.** Solomon Barber (Respondent/Petitioner)

Service address: 4305 NE 125th Ave, Vancouver, WA 98682

Date served: April 8, 2026 (text/MMS service date for this filing set)

Service method actually used: Text message / MMS transmission to (503) 381-6911 (and any other method listed below that was actually used)

Proof reference (receipt/tracking/affidavit/email log): Google Voice transcript records showing MMS/order-image transmissions and admissions in the same chain (14166 transcript: MMS sends at 2026-03-10 10:36:48-10:36:49 PT; Solomon responses at 10:39:26 and 10:45:53), plus supporting inbound records uid_743129 and uid_743131 and order-awareness records uid_660669 and uid_660690

**2.** Counsel for Solomon Barber (same-matter notice copy; acceptance disputed)

Name: Alex Bluestone

Service email: alex@salemprobate.com

Date served: 2026-04-03 (outgoing service-labeled email); 2026-04-04 (counsel response); and additional attorney transmission date used for this filing set: April 8, 2026

Service method actually used: Email transmission to counsel; same-day FedEx transmittal to counsel office

Proof reference (receipt/tracking/affidavit/email log): 2026-04-03 service email chain + 2026-04-04 response; FedEx receipt no. HIOKO00722565, tracking 870305656111

Service-method key (select only the method actually used for each recipient entry above):

**1.** First-class U.S. Mail.

**2.** Personal service.

**3.** Email/eService (if permitted by rule/order/acceptance).

**4.** Other authorized method: _____.

**5.** Text message/MMS service (if permitted by rule/order or previously authorized alternate service).

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: April 8, 2026

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

# Oregon Authority Table

This table is the authority register for the current packet. It is grounded to official Oregon statutes and rules and is intended to support filing-stage citation checks and argument framing.

## 1) Motion for GAL Appointment

**1.** Protective-proceeding use of civil procedure and evidence rules:

`ORS 125.050`

Working use: unless chapter 125 provides otherwise, the Oregon Rules of Civil Procedure and the Oregon Evidence Code apply in protective proceedings.

**2.** Notice to interested persons in protective proceedings:

`ORS 125.060`

Working use: identifies who must receive notice of a petition for appointment of a fiduciary or other protective order, including the respondent and specified relatives or other interested persons.

**3.** Manner and timing of notice:

`ORS 125.065`

Working use: requires personal service on a respondent who has attained 14 years of age, permits mailing for other notice recipients, and generally requires service or mailing at least 15 days before the final date for filing objections.

**4.** Objections and hearing path:

`ORS 125.075` and `ORS 125.080`

Working use: interested persons may present objections; objections to a petition may be written or oral; if objections are presented, the court shall schedule a hearing; and the court may require a hearing and must hold one if the respondent or protected person objects and does not withdraw the objection.

**5.** Counsel / participation at hearing:

`ORS 125.080`

Working use: the respondent or protected person may appear at a hearing in person or by counsel.

**6.** Protective-person special advocate:

`ORS 125.120`

Working use: after appointment of a fiduciary and under the conditions stated in the statute, the court may appoint a protected person special advocate; this is not the same thing as a general-purpose GAL authority and should not be conflated with it.

**7.** EPPDAPA restraining-order relief baseline:

`ORS 124.020`

Working use: supports abuse-prevention restraining-order relief terms reflected in the signed EPPDAPA order packet, including respondent conduct and property directives.

## 2) Motion to Dismiss (Collateral Estoppel)

**1.** Oregon issue-preclusion elements:

`Rawls v. Evans, 234 Or App 316 (2010)` quoting `Nelson v. Emerald People's Utility Dist., 318 Or 99, 104, 862 P2d 1293 (1993)`

Working use: the five issue-preclusion requirements are identity of issue, actual litigation and essentiality, full and fair opportunity to be heard, party or privity, and a prior proceeding of the type given preclusive effect.

**2.** Identical-issue requirement:

`Nelson v. Emerald People's Utility Dist., 318 Or 99, 105-06, 862 P2d 1293 (1993)`

Working use: issue preclusion does not apply when the issues are merely similar but not identical.

**3.** Prior separate proceeding requirement / same-case limitation:

`Hayes Oyster Co. v. Dulcich, 199 Or App 43, 50, 54, 110 P3d 615, rev den, 339 Or 544 (2005)`

`Westwood Construction Co. v. Hallmark Inns, 182 Or App 624, 631-32, 637 n 10, 50 P3d 238, rev den, 335 Or 42 (2002)`

Working use: issue preclusion applies to a prior separate proceeding, not merely to different claims or phases within the same lawsuit.

**4.** Current caution:

Even though the doctrine is now authority-grounded, do not present the collateral-estoppel branch as established in this matter until the actual prior order / judgment / proceeding record is obtained and mapped to the elements above.

### 3) Motion for Order to Show Cause / Sanctions Track

**1.** Remedial contempt procedure and aggrieved-party initiation:

`ORS 33.055`

Working use: an aggrieved party may initiate a remedial-contempt proceeding, request that the contempt defendant be ordered to appear, and must file supporting documentation sufficient to give notice of the specific acts alleged to constitute contempt.

**2.** Compelling attendance after failure to appear on an order to appear:

`ORS 33.075`

Working use: if a person served with an order to appear under `ORS 33.055` fails to appear, the court may issue any order or warrant necessary to compel appearance.

**3.** Remedial sanctions available in contempt:

`ORS 33.105(1)`

Working use: the court may impose one or more remedial sanctions, including compensation for loss, injury, or costs, orders designed to ensure compliance with a prior court order, attorney fees, and other effective remedial sanctions unless otherwise provided by statute.

**4.** Improper-purpose / unsupported-filing sanctions:

`ORCP 17 C(2)-(4)`

Working use: a signer certifies that a filing is not presented for an improper purpose, that legal positions are warranted by existing law or a nonfrivolous argument, and that factual assertions are supported by evidence or specifically identified as expected to be supported after investigation or discovery.

**5.** Discovery / production sanction support if subpoena-related production becomes litigated through motion practice:

`ORCP 46 A(4)` and `ORCP 46 B(2)`

Working use: the court may award reasonable expenses on a motion to compel and may enter just orders when a party fails to obey an order to provide or permit discovery.

### 4) Service

**1.** Service of orders, motions, notices, and other later-filed papers:

`ORCP 9 A-B`

Working use: subsequent pleadings, orders, motions, notices, and similar papers generally must be served on each party, and service on represented parties is generally made on counsel by delivery, mail, e-mail, electronic service, or other authorized means.

**2.** Time-computation rule:

`ORCP 10 A`

Working use: excludes the triggering day, includes the last day unless it falls on a weekend or legal holiday, and extends the deadline to the next business day when appropriate.

**3.** Additional time after certain service methods:

`ORCP 10 B`

Working use: except for summons, three days are added when a party must act within a prescribed period after service by mail, e-mail, facsimile, or electronic service.

**4.** Subpoena obedience / warning language:

`ORCP 55 A(1)(a)(vi)(A)-(B)`

Working use: subpoenas must state that they must be obeyed unless a judge orders otherwise and that disobedience is punishable by a fine or jail time.

**5.** Clackamas supplementary probate rules:

`Clackamas SLR 9.035`, `SLR 9.076`, and related Chapter 9 probate rules in the 2026 Clackamas Supplementary Local Rules

Working use: no separate local rule has yet been identified as changing the core show-cause, sanctions, subpoena, service, or issue-preclusion analysis in this packet, but the Clackamas probate SLRs do supply local deficiency/citation practice and probate-administration requirements that may become relevant if the court requests local-rule support or probate-case management detail.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# [PROPOSED] ORDER ON MOTION FOR APPOINTMENT AND APPEARANCE OF GUARDIAN AD LITEM

The Court, having reviewed the Motion for Appointment and Appearance of Guardian Ad Litem and the file and record herein, FINDS and ORDERS:

**1.** The motion is: _____.

1A. For consistency with the shared deontic mapping attachments, any prior-GAL continuity issue addressed in this order corresponds to Rule ID R-GAL-01.

**2.** To the extent the motion is granted, a Guardian ad Litem is appointed for Jane Kay Cortez solely for this proceeding, subject to the scope limits in this order.

2A. The GAL appointed under paragraph 2 is: _____.

2B. The appointee in paragraph 2A shall file a notice of acceptance within: _____ days after service of this signed order.

**3.** The GAL is authorized to appear, investigate, and provide recommendations regarding case posture and best-interest concerns, but shall not adjudicate collateral housing, eviction, or federal merits issues.

**4.** The GAL shall file a written report by: _____.

**5.** A status hearing is set for: _____.

**6.** Any dispute regarding formal service validity is reserved for Court determination on the applicable service record and is not resolved by this GAL appointment order.

**7.** Any asserted prior-GAL continuity from related proceedings shall not be treated as established unless certified records are lodged.

7A. No final continuity finding under Rule ID R-GAL-01 is entered unless certified prior order/minute records are identified in the record.

7B. Any uncertified status note, oral relay, or summary chart regarding prior proceedings is treated as context only and not as completed continuity proof.

**8.** Nothing in this order adjudicates collateral housing/eviction/federal-merits issues.

**9.** Nothing in this order constitutes a final preclusion finding based on uncertified overlap context.

**10.** No report deadline in paragraph 4 is enforceable unless and until paragraph 2A is completed and an acceptance filing is made under paragraph 2B (or acceptance is otherwise entered on the record).

**11.** Any duty in this order keyed to a blank date, deadline, or appointee field is triggered only after that field is completed in the signed order.

**IT IS SO ORDERED.**

DATED: _____

_____

**CIRCUIT COURT JUDGE**

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# [PROPOSED] ORDER ON MOTION TO LIMIT ISSUES PENDING THRESHOLD ISSUE-PRECLUSION RECORD OR, IN THE ALTERNATIVE, TO DISMISS TO THE EXTENT PRECLUSION IS ESTABLISHED

The Court, having reviewed the motion, declarations, exhibits, and file, and being fully advised, FINDS and ORDERS:

## I. FINDINGS

**1.** The Court has reviewed the threshold issue-preclusion branch and the alternative dismissal branch.

1A. For consistency with the shared deontic mapping attachments, the dispositive preclusion branch addressed in this order corresponds to Rule ID R-PI-01.

**2.** At this stage, any dispositive preclusion ruling must be supported by admissible records establishing the required Oregon issue-preclusion elements for each specific issue proposed for preclusion, including issue identity, actual litigation/essentiality, finality, party/privity alignment, and full-and-fair opportunity.

**3.** Mere overlap with other proceedings, standing alone, is not sufficient for dispositive preclusion.

**4.** No issue may be treated as precluded unless the affected party had notice and an opportunity to be heard.

4A. Any uncertified status note, oral clerk relay, or summary chart is treated only as context and not as completed proof of a preclusion element.

## II. ORDERS

**5.** The motion is: _____.

**6.** The Court enters threshold narrowing and sequencing as follows:
_____.

**7.** If the Court finds one or more specific issue rows fully supported by admissible records on the required preclusion elements, only those identified issue rows are dismissed/limited as precluded:
_____.

**8.** Any issue row not expressly identified in paragraph 7 is not dismissed on preclusion grounds in this order.

**9.** If no issue row is fully supported at the time of ruling, the dispositive preclusion-dismissal branch is denied without prejudice, and relief is limited to threshold narrowing, sequencing, and

supplementation.

**10.** No later than _____, the parties must file or identify admissible records relevant to threshold preclusion adjudication, including, as applicable, signed orders or judgments, register-of-actions records, and hearing or appearance materials.

**11.** If a party contends no additional prior-proceeding records exist, that party must file a signed statement by _____.

**12.** Before any later dispositive preclusion ruling is requested, the moving party must file (or identify in the current record) a row-by-row element map identifying at least one source citation for each required preclusion element for each issue row.

12A. Any requested dispositive ruling under Rule ID R-PI-01 must identify the specific issue row(s) and the certified source support for each required preclusion element.

12B. If any required element cell for an asserted row remains unsupported at the time of ruling, that row remains non-dispositive and may be handled only through threshold narrowing/sequencing.

**13.** No issue row may be treated as precluded unless the affected party had notice and an opportunity to address that specific row and the cited record support.

**14.** Nothing in this order adjudicates collateral housing, eviction, relocation-duty, or federal civil-rights merits except to the limited extent strictly necessary for guardianship-specific determinations.

14A. Unless paragraph 7 specifically identifies a fully supported row and supporting citations, this order does not enter a dispositive issue-preclusion dismissal.

**15.** Any duty keyed to a blank date or deadline field in this order is triggered only after that field is completed in the signed order.

**16.** Further hearing, if required, is set for: _____.

**IT IS SO ORDERED.**

DATED: _____

_____

**CIRCUIT COURT JUDGE**

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

**[PROPOSED] ORDER TO SHOW CAUSE**
**RE: RESPONDENT SOLOMON BARBER**

The Court, having reviewed the Motion for Order to Show Cause and the file and record herein, ORDERS:

**1.** Solomon Barber shall appear on _____ at _____ in Courtroom _____ to show cause why requested relief should not be granted.

**2.** On or before _____, Solomon Barber shall file and serve a written response addressing:

**a.** compliance with operative order terms reflected in the identified restraining-order record;

**b.** notice/appearance/compliance-path facts relevant to that compliance question; and

**c.** any asserted legal basis for noncompliance.

2A. The written response in paragraph 2 shall also address writ-of-assistance predicate sequence, including: (a) the legal and factual basis relied on to seek or use writ process concerning Jane Kay Cortez; (b) what notice/service steps were taken on Benjamin Barber before attempted coercive execution; and (c) why writ-seeking conduct proceeded despite raised threshold objections concerning service and preclusion posture.

2B. The written response in paragraphs 2 and 2A shall identify the specific order, filing, and service facts the responding party contends authorized any coercive writ process at the time that process was pursued.

2C. For consistency with the shared deontic mapping attachments, the compliance/show-cause branches in this order correspond to Rule IDs R-SC-01 and R-SC-02, and the service-return sufficiency gate corresponds to Rule ID R-SVC-01.

2D. Any uncertified status note, oral relay, or summary chart is treated as context only and not as completed proof for a contempt or service-sufficiency finding.

**3.** The parties shall file certified docket/order materials relevant to notice, appearance, and order-effect issues by: _____.

3A. If proof of service materials required for any requested enforcement relief are not available by the hearing date, those materials shall be filed within: _____ days after receipt, and enforcement-specific determinations are deferred until filing.

3B. No final service-sufficiency determination under Rule ID R-SVC-01 shall be entered on photo-only support without the official sheriff return/proof-of-service record.

**4.** This order requires appearance and explanation first; any remedial sanction determination is reserved unless and until contempt predicates are proven on admissible evidence.

**5.** Failure to comply with this Order may result in further orders authorized by law, including ORS 33.075 appearance-enforcement steps if a served order to appear is not obeyed, and only after proof of service of this Order is filed.

**6.** Formal service-validity issues remain reserved for determination on the service record.

**7.** Nothing in this order adjudicates collateral housing, eviction, or federal civil-rights merits.

**8.** Before any contempt finding or remedial sanction order, Movant shall file and serve a clause-specific proof map identifying each alleged conflicting act and the exact quoted order term offered as violated, with exhibit and date/time citations, no later than: _____.

8A. Any clause-specific proof map filed under paragraph 8 shall identify whether each asserted point is presented under Rule ID R-SC-01 or R-SC-02.

**9.** Responding party may file a response limited to the clause-specific proof map and cited records by: _____.

**10.** No contempt finding or remedial sanction order may be entered unless the responding party had notice and an opportunity to address the specific clause-level proof map and cited records.

10A. If the Court determines additional briefing is required on any alleged legally deficient writ-related filing conduct, the Court may set a separate sanctions-briefing schedule identifying the legal vehicle and evidentiary predicates to be addressed.

**11.** This order does not impose punitive contempt sanctions in the current filing posture.

**12.** Any duty in this order keyed to a blank date or blank deadline field is triggered only after that field is completed in the signed order.

**IT IS SO ORDERED.**

DATED: _____

_____

**CIRCUIT COURT JUDGE**

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# SUPPLEMENTAL DECLARATION OF BENJAMIN BARBER RE: AUTHENTICATION OF GOOGLE VOICE TRANSCRIPT AND SMS EMAIL RECORDS

I, Benjamin Barber, declare as follows:

**1.** I am over 18 years of age and competent to testify to the matters stated in this declaration.

**2.** I submit this declaration to authenticate message records I received and maintained in the ordinary course of my communications with Solomon Barber.

## A. RECORDS IDENTIFIED

**3.** The Google Voice thread transcript produced from my account export for the March 10, 2026 communication thread is a true and correct copy of a communication thread between my account and Solomon's number ending in 6911.

**4.** The inbound SMS email record for the March 10, 2026 10:39:26 AM Pacific message is a true and correct copy of a message I received from Solomon through Google Voice email notification.

**5.** The inbound SMS email record for the March 10, 2026 10:45:53 AM Pacific message is a true and correct copy of a message I received from Solomon through Google Voice email notification.

**6.** Additional order-awareness records for November 17, 2025 are true and correct copies of messages I received from the same source.

## B. FOUNDATION FACTS

**7.** I personally participated in the underlying text-message thread reflected in these records.

**8.** These records were obtained from my own accounts and preserved in this workspace without intentional alteration of message content.

**9.** The records contain sender identity, message content, and date/time metadata consistent with the communication history.

**10.** In the March 10, 2026 thread, the transcript reflects MMS sends from my side followed by Solomon's statements, including "Oh I understand, I'm just not incentivized to cooperate" and "Once I get served and it goes into effect, I will comply ... But it is not in effect."

## C. PURPOSE AND LIMITATION

**11.** I submit these records for authentication/foundation and timeline context.

**12.** I understand that legal sufficiency of service remains for Court determination based on all filings, rules, and orders.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct to the best of my knowledge.

DATED: April 8, 2026

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# NOTICE OF FILING SUPPLEMENTAL DECLARATION RE: GOOGLE VOICE / SMS SERVICE CHAIN AUTHENTICATION

PLEASE TAKE NOTICE that Movant, Benjamin Barber, files the following supplemental declaration in support of the pending motion set:

**1.** Supplemental Declaration of Benjamin Barber Re: Authentication of Google Voice Transcript and SMS Email Records (`117_supplemental_declaration_authenticating_google_voice_sms_service_chain_final.md`).

This supplemental declaration is filed to provide authentication/foundation for the March 10, 2026 message-sequence evidence and related order-awareness records referenced in the pending show-cause and service-related filings.

Movant requests that this supplemental declaration be read together with the pending motion set, declaration materials, and exhibit references currently before the Court.

DATED: April 8, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# CERTIFICATE OF SERVICE (SUPPLEMENTAL DECLARATION + NOTICE RE GOOGLE VOICE/SMS SERVICE CHAIN)

I certify that on April 8, 2026, I served true and correct copies of the following supplemental filing documents:

**1.** Supplemental Declaration of Benjamin Barber Re: Authentication of Google Voice Transcript and SMS Email Records (`117_supplemental_declaration_authenticating_google_voice_sms_service_chain_final.md`);

**2.** Notice of Filing Supplemental Declaration Re: Google Voice / SMS Service Chain Authentication (`118_notice_of_filing_supplemental_declaration_google_voice_sms_service_chain_final.md`).

I served the supplemental filing set on the following person(s):

**1.** Solomon Barber (Respondent/Petitioner)

Service address: 4305 NE 125th Ave, Vancouver, WA 98682

Date served: April 8, 2026 (text/MMS and/or direct service date used for this supplemental filing set)

Service method actually used: Text message / MMS transmission to (503) 381-6911 and/or other method actually used

Proof reference (receipt/tracking/affidavit/email log): Google Voice transcript records showing MMS/order-image transmissions and admissions in the same chain (14166 transcript: MMS sends at 2026-03-10 10:36:48-10:36:49 PT; Solomon responses at 10:39:26 and 10:45:53), plus supporting inbound records uid_743129 and uid_743131 and order-awareness records uid_660669 and uid_660690

**2.** Counsel for Solomon Barber (if appearance is active in this matter)

Name: Alex Bluestone

Service email: alex@salemprobate.com

Date served: 2026-04-03 (outgoing service-labeled email); 2026-04-04 (counsel response); and additional attorney transmission date used for this supplemental set: April 8, 2026

Service method actually used: Email transmission to counsel; same-day FedEx transmittal to counsel office; and/or additional attorney-channel transmission used for this supplemental set

Proof reference (receipt/tracking/affidavit/email log): 2026-04-03 service email chain + 2026-04-04 response; FedEx receipt no. HIOKO00722565, tracking 870305656111

**3.** Additional party/counsel (if any): _____

Service address/email: _____

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log):

_____

Service-method key (select only the method actually used for each recipient entry above):

**1.** First-class U.S. Mail.

**2.** Personal service.

**3.** Email/eService (if permitted by rule/order/acceptance).

**4.** Other: _____.

**5.** Text message/MMS service (if permitted by rule/order or previously authorized alternate service).

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: April 8, 2026

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# NOTICE OF FILING SUPPLEMENTAL CROSS-FORUM DOCKET/ORDER RECORDS

Movant Benjamin Barber files this notice to lodge supplemental cross-forum records relevant to threshold issue-preclusion analysis and overlap-control issues raised in pending motions.

## I. RECORDS FILED WITH THIS NOTICE

**1.** Supplemental Exhibit CF-1: Certified/register docket records for Clackamas County Justice Court case `26FE0586`.

**2.** Supplemental Exhibit CF-2: Filed-stamped and/or certified entered-order set for case `26FE0586` (if provided by records custodian).

**3.** Supplemental Exhibit CF-3: U.S. District Court for the District of Oregon docket sheet for the HACC/Quantum complaint track (with case number).

**4.** Supplemental Exhibit CF-4: Federal filed complaint and any dispositive/final orders or judgment entries from that track (if any).

## II. PURPOSE OF SUPPLEMENT

**5.** These records are filed to support threshold determinations on:

**a.** whether identical issues are being relitigated across forums;

**b.** whether any prior final adjudication exists on those issues;

**c.** whether narrowing or preclusion relief is appropriate in this probate matter.

## III. REQUEST

**6.** Movant requests that the Court consider these supplemental records in connection with:

**a.** Motion to Limit Issues Pending Threshold Issue-Preclusion Record or Dismiss to Extent Preclusion is Established; and

**b.** related declarations and overlap-control arguments already filed.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave
City/State/Zip: Milwaukie, OR 97222
Phone: 971-270-0855
Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# SUPPLEMENTAL DECLARATION OF BENJAMIN BARBER AUTHENTICATING CROSS-FORUM DOCKET/ORDER RECORDS

I, Benjamin Barber, declare as follows:

**1.** I am over 18 years of age and competent to testify to the matters stated herein.

**2.** I submit this supplemental declaration as a foundation declaration for cross-forum docket/order records that may later be filed as Supplemental Exhibits CF-1 through CF-4.

**3.** To the extent CF-1 through CF-4 are later retrieved and lodged, those records will be obtained from court records custodians, court public-access systems, or official court-issued docket/order retrieval channels.

**4.** Retrieval-channel, date/time, and identifier fields for CF-1 through CF-4 are tracked in the accompanying Cross-Forum Exhibit Retrieval Metadata Sheet, which I offer as chain-of-custody support and current retrieval-status tracker.

## A. JUSTICE COURT RECORDS (26FE0586)

**5.** If and when Supplemental Exhibit CF-1 is lodged, it will be offered as a true and correct copy of docket/register materials for Clackamas County Justice Court case `26FE0586`.

**6.** If and when Supplemental Exhibit CF-2 is lodged, it will be offered as a true and correct copy of entered-order and/or filed-stamped record set materials for that same case, to the extent provided by the records channel.

## B. FEDERAL RECORDS (DISTRICT OF OREGON TRACK)

**7.** If and when Supplemental Exhibit CF-3 is lodged, it will be offered as a true and correct copy of a docket sheet produced from District of Oregon public docket channels for the HACC/Quantum complaint track identified by party names.

**8.** If and when Supplemental Exhibit CF-4 is lodged, it will be offered as a true and correct copy of filed complaint and order/judgment records from that track, to the extent available in the retrieved docket set.

## C. LIMITED PURPOSE OF THIS SUPPLEMENT

**9.** I offer any such later-lodged exhibits solely to support threshold issue analysis, including issue identity, finality, and overlap control.

**10.** I use the packet status labels as follows: `Admissible-now`, `Proof-gated`, and `Context-only`.

**11.** I do not ask the Court to treat any issue as precluded unless the legal elements are satisfied by the admissible record.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct to the best of my knowledge.

DATED: _____, 2026

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
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| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

**CERTIFICATE OF SERVICE**
**(SUPPLEMENTAL CROSS-FORUM DOCKET/ORDER RECORDS)**

I certify that on _____, 2026, I served true copies of the following documents:

**1.** Notice of Filing Supplemental Cross-Forum Docket/Order Records;

**2.** Supplemental Declaration of Benjamin Barber Authenticating Cross-Forum Docket/Order Records; and

**3.** Supplemental Exhibits CF-1 through CF-4 (as available).

Service was completed by the following method(s) (check all that apply):

[ ] Email to counsel of record

[ ] First-class U.S. Mail

[ ] Hand delivery

[ ] Other: _____

Recipient(s):

**1.** Solomon Samuel Barber (or counsel of record for same matter)

Address/Email used: _____

**2.** Additional party/counsel (if any): _____

Address/Email used: _____

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____, 2026

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

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# [PROPOSED] ORDER RE SUPPLEMENTAL CROSS-FORUM DOCKET/ORDER RECORDS

This matter came before the Court on Movant's Notice of Filing Supplemental Cross-Forum Docket/Order Records.

## THE COURT FINDS AND ORDERS:

**1.** The supplemental filing is accepted for threshold record purposes.

**2.** Supplemental Exhibits CF-1 through CF-4 are received for consideration on issue identity, finality, and overlap-control questions.

**3.** The Court will determine preclusive effect, if any, only after application of Oregon issue-preclusion elements to the admissible record.

**4.** Pending that determination, the Court may limit merits relitigation of overlapping non-probate issues to prevent inconsistent adjudication across forums.

## IT IS SO ORDERED.

DATED: _____

_____

**CIRCUIT COURT JUDGE**

# Motion Review and Preclusion Analysis - 2026-04-08

Motion reviewed:

• `02_motion_to_dismiss_for_collateral_estoppel_final.md`

## A. Existing overlap record now captured in motion

**1.** Justice Court eviction track (`26FE0586`) is now expressly framed as a Section 18 displacement/housing-duty dispute involving HACC and Quantum.

**2.** Federal District of Oregon complaint track is now expressly tied to overlapping relocation/accommodation/hearing-interference facts against HACC and Quantum.

**3.** Ashley Ferron protective-order lane is now explicitly addressed:

• repository summary says relief against Julio was granted,

• Ashley filings were denied,

• and contemporaneous materials summarize that the pro tem judge treated those housing-administration complaints as outside the proper protective-order lane, with the exact on-record wording to be authenticated through the prepared Clackamas FTR request path before any quoted hearing statement is proffered.

**4.** Motion now states that if eviction merits are retried, HACC and Quantum must be joined/impleaded in the proper forum rather than litigating their alleged duty breaches in absentia in probate.

## B. How this supports the requested threshold relief

**1.** It strengthens the request to limit this probate matter to guardianship-specific issues while preclusion proof is developed.

**2.** It improves the argument for avoiding inconsistent findings across probate, eviction, and federal tracks.

**3.** It preserves the dismissal request, but only to the extent admissible records satisfy Oregon preclusion elements.

## C. Remaining proof gaps before strongest dismissal ruling

**1.** Certified Justice Court docket/order set showing finality and issue identity for any asserted preclusion issue.

**2.** Filed-stamped District of Oregon docket sheet with actual case number and status.

**3.** If asserting judicial assignment/advisement facts (for example, assignment to a specific federal judge), include a filed docket printout or other admissible record confirming that point.

**4.** Certified records for Ashley matters (`26P000432`, `26P000433`) if they will be used beyond contextual overlap/venue narrative.

## D. Practical filing posture recommended

**1.** File current motion as threshold narrowing/proof-gating relief first.

2. Attach presently available overlap exhibits and declaration support.
3. Lodge supplemental certified cross-forum records promptly once obtained.
4. Ask the Court to reserve merits-preclusion adjudication until certified records are in the file.

### E. Source anchors used for this update

1. `02_motion_to_dismiss_for_collateral_estoppel_final.md`
2. `04_declaration_of_benjamin_barber_in_support_of_motions_final.md`
3. `evidence/email_imports/starworks5-fraud-reimport-20260404/0019-Re-Allegations-of-Fraud---JC-Household-CAMTdTS9_rTXe5kUn5Qea5gNfwanuQFM2RE-dQSkq9-NBquZv7g-mail.gmail.com/message.json`
4. `85_case_caption_matrix_2026-04-07.md`
5. `55_issue_preclusion_certified_retrieval_queue_2026-04-07.md`
6. `evidence/paper documents/scanned federal lawsuit coversheet.pdf`

IN THE CIRCUIT COURT OF THE STATE OF OREGON
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# CERTIFICATE OF SERVICE
# (SUPPLEMENTAL NOTICE RE CLERK-RELAYED FEDERAL ADVISEMENT STATUS)

I certify that on _____, 2026, I served true and correct copies of the following document:

**1.** Notice of Supplemental Status: Clerk-Relayed Federal Advisement (Pending Docket Confirmation) (`149_notice_of_clerk_relayed_federal_advisement_status_pending_docket_confirmation_final.md`).

I served the document on the following person(s):

**1.** Solomon Barber (Respondent/Petitioner)

Service address: 4305 NE 125th Ave, Vancouver, WA 98682

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log):
_____

**2.** Counsel for Solomon Barber (same-matter notice copy; acceptance disputed unless stated otherwise)

Name: Alex Bluestone

Service email: alex@salemprobate.com

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log):
_____

**3.** Additional party/counsel (if any): _____

Service address/email: _____

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log):
_____

Service-method key (select only method(s) actually used for each recipient):

**1.** First-class U.S. Mail.

**2.** Personal service.

**3.** Email/eService (if permitted by rule/order/acceptance).

**4.** Other authorized method: _____.

**5.** Text message/MMS service (if permitted by rule/order or previously authorized alternate service).

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____, 2026

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
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# MOTION TO LIMIT PROBATE ISSUES AND REQUIRE SECTION 18 / EVICTION MERITS TO BE LITIGATED IN THE PROPER FORUM, OR, ONLY IF NECESSARY, FOR LIMITED ORCP 29 JOINDER

Movant Benjamin Barber moves for an order limiting this probate matter to guardianship and protective-proceeding issues, and requiring that Section 18 relocation-duty, eviction-merits, and housing-liability disputes involving Housing Authority of Clackamas County (HACC) and Quantum Residential Property Management, L.P. be litigated only in the proper forum.

Only if the Court concludes that some housing-merits component cannot be excluded from this probate proceeding, Movant requests limited ORCP 29 joinder of HACC and Quantum for the narrow purpose of resolving whether complete relief and consistent obligations can be achieved without them.

## I. RELIEF REQUESTED

**1.** Enter an order that Section 18 relocation-duty, eviction-merits, relocation-processing liability, and related HACC/Quantum housing-merits adjudication should be reserved to the proper eviction and federal tracks, and not retried here as probate merits except to the extent narrowly necessary for a true protective-proceeding issue.

**2.** Only if the Court determines that some such housing-merits component cannot be excluded from this protective proceeding, and after service with an opportunity to be heard, join HACC and Quantum under ORCP 29A on a limited basis for overlap-control and party-structure purposes.

**3.** Set a threshold hearing limited to forum fit, scope, and party structure.

## II. AUTHORITY

**4.** ORS 125.050 applies ORCP in protective proceedings unless chapter 125 provides otherwise, and all ORCP-based requests in this motion are made only to the extent procedurally applicable in this probate posture.

**5.** ORS 125.025 gives the Court continuing authority to protect the respondent/protected person and manage scope of proceedings.

**6.** ORCP 29A permits joinder of persons needed for just adjudication when complete relief cannot otherwise be accorded or inconsistent obligations risk exists.

**7.** ORCP 29B requires the Court, when joinder is not feasible, to evaluate prejudice, the ability to shape relief to reduce prejudice, adequacy of judgment in the person's absence, and whether an

adequate remedy exists if the action is dismissed for nonjoinder.

**8.** ORCP 22C governs third-party practice but is derivative-liability focused, requiring a plausible pleading that the nonparty is or may be liable to the defending party for all or part of the petitioner's claim; it is not the best fit where absent entities are alleged primary housing actors rather than liability-over parties.

**9.** ORS 125.065, 125.075, and 125.080 govern notice, objections, and hearings on motions in protective proceedings.

**10.** If the Court determines any ORCP path is procedurally inapplicable in this probate posture, Movant requests the same practical scope result under the Court's Chapter 125 authority to confine this case to guardianship-specific adjudication.

## III. FACTUAL/PROCEDURAL BASIS

**11.** The overlap materials identify an active Justice Court eviction-response track (26FE0586) framing Section 18 relocation-duty violations, including 42 U.S.C. section 1437p(d) and 24 C.F.R. section 970.21, against HACC and Quantum. See Supplemental Declaration Re ORCP 29A Complete-Relief and Inconsistent-Obligation Factors, paragraphs 7-9, and Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 21-22.

**12.** The same overlap materials identify a District of Oregon complaint track against HACC and Quantum concerning overlapping relocation, accommodation, hearing-access, and housing-interference facts. See Supplemental Declaration Re ORCP 29A Complete-Relief and Inconsistent-Obligation Factors, paragraphs 7-9, and Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 21-22.

**13.** Pending probate petitions and motions raise overlap risk if the same housing-merits issues are retried here. See Objection to First Amended Petition for Appointment of Guardian, paragraphs 46-49, and Supplemental Declaration Re ORCP 29A Complete-Relief and Inconsistent-Obligation Factors, paragraphs 13-16.

**14.** HACC and Quantum are not presently named parties in this probate matter, and the current protective-proceeding record does not require full merits adjudication of their federal housing duties in order to decide guardianship-related questions concerning Jane Kay Cortez. See Supplemental Declaration Re ORCP 29A Complete-Relief and Inconsistent-Obligation Factors, paragraphs 4-6, and Objection to First Amended Petition for Appointment of Guardian, paragraphs 46-49.

**15.** If this Court does not exclude those housing-merits issues, however, absent-party problems and inconsistent-obligation risks become substantially more acute. See Supplemental Declaration Re ORCP 29A Complete-Relief and Inconsistent-Obligation Factors, paragraphs 7-9.

**16.** In this motion, points supported by admissible records are presented as filing-ready; unresolved cross-forum finality and issue-identity points are presented as provisional unless supported by certified or filed-stamped records.

**17.** Feasibility posture: based on the current case record, HACC and Quantum appear to have identifiable service channels reflected in companion subpoena/service materials, including HACC custodian service addressing at 13930 Gain St, Oregon City, OR 97045 and Quantum service

addressing at 601 E 16th St, Vancouver, WA 98663 (each subject to final verification at issuance).

**18.** Because feasibility is fact-sensitive, Movant does not ask the Court to treat address references alone as conclusive proof of completed ORCP service.

**19.** If the Court requests added foundation before an ORCP 29 ruling, Movant requests leave to file a short supplemental declaration limited to: service-channel verification steps used, custodian/agent identity confirmation, service-attempt chronology, resulting prejudice mechanics if parties remain absent, and timeline impact on the guardianship calendar.

**20.** Unless and until that supplemental foundation is lodged, Movant requests shaped scope relief first and does not ask the Court to treat feasibility assertions as completed service findings.

**21.** Movant further requests that the Court make no final feasibility finding under ORCP 29A/29B based solely on address references without filed service-attempt and agent/custodian-proof support.

21A. Before any final ORCP 29A/29B feasibility finding, Movant requests that the record include at least one filed proof item identifying date, method, recipient identity/title, and result for each attempted service channel.

## III-A. RULE-ID BRANCH MAPPING

21B. For consistency with the shared deontic mapping attachments, the ORCP 29B fallback branch in this motion is Rule ID R-JN-01.

21C. The ORCP 22C derivative-liability limit branch in this motion is Rule ID R-JN-02.

21D. Any final feasibility finding requested under Rule ID R-JN-01 is conditioned on the filed service-attempt proof identified in paragraph 21A.

## IV. ARGUMENT

### A. ORCP 29A JOINDER STANDARD IF COLLATERAL MERITS ARE NOT EXCLUDED

**22.** The probate court can decide whether a guardian or other protective relief is appropriate without converting this case into a trial of Section 18 relocation compliance, eviction causation, or housing-program liability.

**23.** If the Court permits housing-merits adjudication in this case while HACC and Quantum remain absent, existing parties face risk of fragmented adjudication and inconsistent obligations.

**24.** In that limited circumstance, ORCP 29A is the narrower mechanism to test whether complete relief and consistent obligations are possible.

### B. ORCP 29B FALLBACK FACTORS IF JOINDER IS NOT FEASIBLE

**25.** If joinder is not feasible, the Court should evaluate ORCP 29B factors and proceed with shaped relief that avoids prejudice:

**a.** prejudice to absent entities and existing parties if collateral housing merits are decided in their absence;

**b.** whether any prejudice can be reduced by limiting this case to guardianship findings and reserving collateral merits;

**c.** adequacy of a probate judgment that excludes collateral housing-merits determinations; and

**d.** availability of adequate remedy in the eviction/federal forums for those collateral merits.

Record anchors for this factor analysis include paragraphs 11-15 and 17-21 of this motion, together with Supplemental Declaration Re ORCP 29A Complete-Relief and Inconsistent-Obligation Factors, paragraphs 4-16, and Objection to First Amended Petition for Appointment of Guardian, paragraphs 46-49.

Factor-to-record application:

**a.** prejudice mechanics: absent entities would face practical merits determinations without party status if collateral housing merits are tried here (paragraphs 13-14 and 22 of this motion; Supplemental Declaration Re ORCP 29A Complete-Relief and Inconsistent-Obligation Factors, paragraphs 7-9);

**b.** prejudice reduction mechanics: limiting this case to guardianship findings avoids collateral merits determinations against absentees (paragraphs 22 and 29-33 of this motion; Objection to First Amended Petition for Appointment of Guardian, paragraphs 46-49);

**c.** adequacy mechanics: a guardianship-only judgment can resolve Chapter 125 protective questions without deciding full housing-liability merits (paragraphs 14, 22, and 26(c) of this motion);

**d.** alternative-remedy mechanics: identified eviction/federal tracks provide separately postured avenues for collateral housing-merits adjudication (paragraphs 11-12 of this motion; Supplemental Declaration Re ORCP 29A Complete-Relief and Inconsistent-Obligation Factors, paragraphs 7-9 and 14-16).

**26.** Application of those factors favors proceeding with this protective case in narrowed form, not expanded merits adjudication:

**a.** prejudice is highest if absent entities are functionally adjudicated without party status;

**b.** prejudice can be reduced by shaping relief to guardianship-only determinations;

**c.** a guardianship-only judgment remains adequate for Chapter 125 purposes; and

**d.** collateral housing merits have alternate forums already identified in the record.

Those conclusions are based on the current overlap and feasibility record cited above and are offered as threshold scope findings rather than completed merits adjudications.

Before any hearing on this ORCP 29B issue, Movant will file (or identify in the current record) a one-page ORCP 29B factor chart mapping each factor to at least one legal authority cite and one admissible record cite.

## C. ORCP 22C DERIVATIVE-LIABILITY LIMIT

**27.** ORCP 22C is not the best procedural vehicle here because third-party practice requires liability-over pleading (nonparty may be liable for all or part of petitioner's claim against defending party), while the present allegations treat HACC and Quantum as primary actors in separate housing disputes rather than derivative indemnitors for the guardianship petition claim.

**28.** Unless a clean derivative-liability theory is pleaded, collateral housing claims should remain outside ORCP 22C practice in this probate case under Rule ID R-JN-02.

## D. REQUESTED SCOPE RESULT

**29.** If protective-proceeding scope or ORCP posture makes joinder impractical here, the correct remedy is not to litigate those merits anyway; it is to confine this case to guardianship issues and require housing-liability litigation in the proper case.

**30.** This approach preserves guardianship-function integrity while protecting against collateral relitigation and inconsistent outcomes.

**31.** The same scope-limiting principle is especially important where collateral coercive-control allegations are disputed, because those disputes can rapidly expand beyond the probate proceeding and overwhelm threshold guardianship adjudication. For this motion's ORCP 29/22 purposes, the Court should require a clean record and keep collateral merits in the proper forum rather than trying those merits here.

**32.** Movant requests written findings identifying which ORCP 29B factor(s) the Court relied on (or, if ORCP is found inapplicable, which Chapter 125 scope-management basis is relied on) so the relief sequence is clear on the record.

## V. PROPOSED SCOPE LIMITS IF JOINDER IS ALLOWED

**33.** Any joinder should be limited to overlap-control and party-structure determinations, and should not convert this proceeding into a full housing-tort or federal housing-liability trial.

**34.** Any merits findings beyond that limited purpose should be deferred to the properly postured eviction/federal matters.

## VI. RESERVATION

**35.** Movant reserves supplementation with docket materials, orders, and additional admissible records for forum-status and issue-preclusion analysis.

## VII. LIMITATIONS AND REQUESTED HANDLING

**36.** Any joinder order should preserve due-process sequence, including service, response opportunity, and a scope-limited hearing before any merits effect.

**37.** On the current record, Movant requests shaped scope relief to prevent collateral-merits forum drift.

**38.** Uncertified overlap context, address references, and provisional cross-forum status notes are not offered as completed final-merits proof.

**39.** Any demonstrative chart or summary aid is offered only as an organizational aid; admissible exhibits and certified records control if any conflict appears.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave
City/State/Zip: Milwaukie, OR 97222
Phone: 971-270-0855
Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
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| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# FALLBACK MOTION TO EXCLUDE OR STRIKE COLLATERAL SECTION 18 / EVICTION / FEDERAL HOUSING MERITS FROM PROBATE

Movant Benjamin Barber moves for an order excluding, striking, or deferring collateral housing-merits litigation from this probate proceeding where those issues are being litigated or pursued in separate eviction and federal tracks and involve nonparty entities.

## I. RELIEF REQUESTED

**1.** Exclude from this probate case any merits adjudication of Section 18 relocation-duty violations, eviction liability, and federal housing civil-rights claims against HACC or Quantum.

**2.** Strike or disregard pleadings/arguments to the extent they seek to obtain merits determinations on those collateral housing issues in this protective proceeding.

**3.** Limit this matter to guardianship-specific issues, welfare findings, and fiduciary-related determinations under ORS chapter 125.

**4.** Reserve all housing-merits adjudication to the properly postured eviction and federal forums.

## II. AUTHORITY

**5.** ORS 125.025 authorizes the Court to control protective-proceeding scope to protect welfare and proper case management.

**6.** ORS 125.050 applies ORCP in protective proceedings; the Court may manage joinder/scope to avoid prejudice and inefficiency.

**7.** ORCP 29B supplies the nonfeasibility fallback factors (prejudice, shaping relief, adequacy of judgment, and adequacy of alternate remedy), which support a narrowed probate path when collateral merits belong elsewhere.

**8.** ORCP 22C third-party practice is derivative-liability specific and does not fit absent entities alleged as primary actors unless a clean liability-over theory is pleaded.

**9.** Oregon issue-preclusion law supports threshold management where overlapping issues are pending in separate forums and finality/identity records remain incomplete.

## III. BASIS

**10.** The overlap materials identify a Justice Court eviction track (26FE0586) and a federal District of Oregon complaint track involving overlapping housing facts and duties. See Supplemental Declaration Authenticating Cross-Forum Docket/Order Records, Notice of Supplemental Status:

Clerk-Relayed Federal Advisement (Pending Docket Confirmation), and the Cross-Forum Exhibit Retrieval Metadata Sheet.

**11.** Those tracks involve alleged Section 18 relocation duties (42 U.S.C. section 1437p(d); 24 C.F.R. section 970.21) and related housing administration conduct by HACC and Quantum. See Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 21-22, Motion to Limit Probate Issues and Require Section 18 / Eviction Merits to Be Litigated in the Proper Forum, and Supplemental Declaration Re ORCP 29A Complete-Relief and Inconsistent-Obligation Factors.

**12.** Probate is not the proper forum for full merits determination of those non-probate housing-liability disputes, especially with absent entities and ongoing parallel litigation.

**13.** On the current record, cross-forum finality assertions remain provisional unless confirmed by certified or filed-stamped records. Any supporting summary charts are offered only as organizational support; admissible exhibits and certified records control.

13A. For consistency with the shared deontic mapping attachments, this fallback scope-control branch is tracked as Rule ID R-JN-01; any dispositive preclusion branch remains Rule ID R-PI-01 in the separate threshold preclusion motion.

## IV. ARGUMENT

**14.** Allowing collateral housing-merits litigation here would risk inconsistent rulings, expanded scope, and prejudice to orderly guardianship adjudication.

**15.** Under ORCP 29B's fallback analysis, prejudice is minimized by shaping relief to exclude collateral housing merits and reserving them for the eviction/federal tracks where the primary housing actors are already positioned.

**16.** A probate judgment limited to guardianship questions remains adequate and administrable, while housing-merits adequacy is preserved in those separate forums.

**17.** The narrower and safer remedy is to confine this case to guardianship issues while preserving parties' ability to pursue housing merits in the proper actions.

**18.** If any overlap issue is necessary for a discrete probate determination, the Court should decide only the minimum required question and reserve broader merits for the separate tracks.

18A. This fallback motion does not request any dispositive issue-preclusion dismissal ruling; any dispositive preclusion request remains in the separate threshold preclusion motion and only to the extent supported by admissible certified records.

18B. Relief requested in this motion is limited to Rule ID R-JN-01 shaped-relief handling and does not request completion of Rule ID R-PI-01.

## V. RESERVATION

**19.** Movant reserves the right to supplement with certified dockets/orders and any admissible records relevant to threshold preclusion/scope findings.

## VI. SUPPLEMENTAL SUMMARY ATTACHMENT

**20.** Movant incorporates any demonstrative chart only as an organizational aid for proof posture and remedy mapping; admissible exhibits and certified records control.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
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| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# OBJECTION TO FIRST AMENDED PETITION FOR APPOINTMENT OF GUARDIAN, TO WAIVER-OF-NOTICE / EMERGENCY RELIEF, AND TO WRIT-BASED FORCED TRANSPORT OR COMPARABLE COERCIVE REMOVAL RELIEF

Objector Benjamin Barber objects to the First Amended Petition for Appointment of Guardian to the extent it seeks emergency or plenary relief on a one-sided and materially disputed record.

This includes waiver-of-notice relief, writ-based forced transport or removal relief, payment of adverse attorney fees from Jane Kay Cortez's funds, and broad authority over Jane Kay Cortez's housing, residence, placement, or possible estate matters without a clean underlying record.

This objection is not a concession that every disputed merits issue must be adjudicated now.

To the contrary, Objector requests that the Court separate true guardianship issues from disputed collateral housing, relocation, trust, and cross-forum matters, require a clean predicate record for any coercive relief, and deny any overbroad request for plenary authority on the present showing.

## I. RELIEF REQUESTED

**1.** Deny emergency or waiver-of-notice relief to the extent it rests on a one-sided or materially incomplete factual record.

**2.** Deny any writ-based, law-enforcement-assisted, forced-entry, forced-transport, or comparable coercive removal relief unless and until a clean predicate order and notice basis are established by admissible records.

**3.** Deny any request for plenary authority, facility-placement authority, or similarly broad control over Jane Kay Cortez on the present disputed record.

**4.** Deny any request to charge Jane Kay Cortez's funds with adverse attorney fees or costs under ORS 125.095 on the present showing.

**5.** Require that disputed Section 18 relocation-duty, eviction-merits, HACC/Quantum processing, and related housing-liability issues remain limited to the proper eviction or other appropriate forum, except to the extent strictly necessary to understand guardianship-specific facts.

**6.** Set any threshold hearing, if one is held, on narrowed issues of emergency basis, notice, scope of requested authority, and the sufficiency of the predicate record.

Under ORS 125.025, ORS 125.050, ORS 125.065, ORS 125.075, and ORS 125.080, this Court retains protective-case authority to require notice-compliant, scope-limited, evidence-supported adjudication

before coercive or plenary control is imposed.

## II. FACTUAL RESPONSE POSTURE

**7.** Solomon Samuel Barber's petition presents an emergency narrative that attributes Jane Kay Cortez's circumstances primarily to Benjamin Barber.

The same narrative materially understates the roles of Housing Authority of Clackamas County, Quantum Residential, disputed outside document flows, and already-existing protective-order conflict.

**8.** The petition also seeks extremely broad control, including plenary authority, possible institutional or residential placement, and attorney fees from Jane Kay Cortez's funds.

**9.** On the present filed and lodged record, those requests should not be granted without close scrutiny because multiple material allegations are disputed, overstated, incomplete, or depend on records not yet cleanly produced.

**10.** Source-anchor note for this objection posture: this filing relies on the petition/writ record in this case, restraining-order sequence materials, and declarations filed with this packet, with the Short-Form Declaration of Benjamin Barber (Threshold Relief) serving as the primary threshold declaration and supplemental declarations supplying added chronology/detail. The primary-source sequence for that branch is summarized in the filed source-ladder support note for this packet. Unresolved points are treated as provisional pending additional admissible support and not offered as finally adjudicated facts. To the extent additional trust, authority, predicate-order, or notice records remain in petitioners' or the court's control and have not yet been produced, that nonproduction supports caution and narrowing rather than broader coercive or plenary relief.

## III. SPECIFIC OBJECTIONS

### A. EMERGENCY / NOTICE / WRIT ISSUES

**11.** The petition's incapacity and immediate-danger narrative should not be accepted as a one-sided basis for emergency or plenary relief merely because Jane Kay Cortez may need assistance in some areas. (Exhibit 2; Short-Form Declaration of Benjamin Barber (Threshold Relief), paragraphs 12 and 16-17; Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 15-24.)

**12.** The present record includes contrary and qualifying evidence, including Jane Kay Cortez's own declarations, Benjamin Barber's declaration, and other materials showing disputed housing, protective-order, and family-control context. (Exhibit 1; Short-Form Declaration of Benjamin Barber (Threshold Relief), paragraphs 16-17; Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 4-14 and 22-24.)

**13.** The petition's APS / police interference allegations against Benjamin Barber are materially incomplete because the current record also reflects contemporaneous protective-order conflict involving Solomon Samuel Barber. (Exhibit 1; Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 4-5, 22-24.)

**14.** That same-day protective-order context matters. It means the alleged APS / police event should not be treated as a neutral welfare narrative divorced from the ongoing protective-order conflict.

(Exhibit 1; Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 4-14.)

**15.** Objector contends the petition's waiver-of-notice / emergency-appointment theory is overstated because the housing emergency described there was not simply caused by Benjamin Barber.

The current record reflects documented HACC / Quantum processing delay, Section 18 relocation-duty issues, and disputed housing-authority conduct affecting the household's ability to relocate.

(Supplemental Declaration Re ORCP 29A Complete-Relief and Inconsistent-Obligation Factors, paragraphs 4-12; Motion to Limit Probate Issues and Require Section 18 / Eviction Merits to Be Litigated in the Proper Forum, factual/procedural section.)

**16.** The writ-of-assistance / forced-transport component is especially troubling. The current filed and lodged record reflects a probate-side writ directing law enforcement to accompany Solomon Barber, enter Jane Kay Cortez's residence forcibly if necessary, locate her, and transport her to Providence Milwaukie or another nearby hospital. (Petition/writ record in this case; Short-Form Declaration of Benjamin Barber (Threshold Relief), paragraph 12; Declaration of Benjamin Barber (Court-Safe Trimmed), paragraph 15; provisional to the extent additional underlying records remain uncertified.)

**17.** The supporting declaration set includes statements describing distress and coercive-removal concerns in connection with that sequence. (Short-Form Declaration of Benjamin Barber (Threshold Relief), paragraphs 16-17; Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 22-24; provisional to the extent any sub-record remains uncertified.)

**18.** On this record, the Court should require a clean predicate order and notice basis before any comparable coercive removal or transport relief is considered further.

**19.** This subsection is presented as threshold validity/scope objection on current records, not as a request for final adjudication of every disputed historical detail.

**20.** For any disputed narrative assertion in this objection not yet anchored to admissible exhibit proof, Objector requests that the Court treat it as scope/weight context only and not as an independently established fact. Paragraphs 11-14 are offered as threshold contradiction context currently supported by the filed record; paragraphs 15-17 include mixed supported and provisional components as labeled; paragraphs 18-20 request narrowing/weight treatment rather than final factual adjudication.

## B. CONTROL / SCOPE ISSUES

**21.** Objector contends the petition's assertion that no less restrictive alternatives existed is overstated on the present record. Under ORS chapter 125's protective framework, requested authority should be tailored to demonstrated need rather than imposed in broad plenary form on contested facts.

**22.** Objector contends that even where proof remains incomplete, the current record is sufficient to show that narrower protective boundaries, existing court-order history, and less sweeping alternatives were not fairly accounted for before Solomon requested plenary control. At minimum, that unresolved alternatives question weighs against immediate plenary relief because Chapter 125 protective relief should be tailored to what is actually shown on the present record.

**23.** Objector contends the petition's financial-control / trust / inheritance theory is in material tension on the present record. It alleges a substantial inheritance / Special Needs Trust issue while also describing Jane Kay Cortez's estate as unknown but not believed to exceed $10,000.

**24.** Objector contends the current record now includes the Gerald Miller probate packet itself, which confirms a Gerald Miller estate, last will, and revocable-trust structure involving Jane Kay Cortez as an heir or devisee. Objector contends this makes it even more important that any actual trust papers, estate distribution papers, or authority-linked documents be produced rather than vaguely referenced. (Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 22-25; provisional to the extent any trust/estate sub-record remains uncertified.)

**25.** Objector contends the petition nonetheless seeks broad authority over Jane Kay Cortez's affairs without producing the trust papers, estate documents, accounting, corpus information, or any complete authority chain that would let the Court evaluate what financial control is actually being requested.

**26.** Benjamin Barber's position has been that he should have been allowed to review any papers Solomon Samuel Barber caused Jane Kay Cortez to sign, or purported to sign on her behalf, concerning the estate of Gerald Miller, any proposed trust, or any claimed authority over her affairs.

**27.** Solomon Samuel Barber's own preserved November 17, 2025 text supports that he was already asserting a trust-related role or channel. In that text, he stated in substance that Jane's disability trust was "between her and the estate," that Benjamin had "no legal claim" to details, and that Solomon was trying to get "her rep payee and the trust in contact." (Supplemental Declaration Re: Authentication of Google Voice Transcript and SMS Email Records, paragraph 6.)

**28.** The earlier restraining-order exhibit sequence adds to that concern because it appears to show Jane Kay Cortez stating that she signed papers with Sam / Solomon that she did not understand, including a paper she thought had something to do with her dad's will and on which she said she had put her social security number. (Exhibit 1 sequence; provisional to extent any subdocument remains uncertified.)

**29.** Objector contends the petition's proposed placement language is overbroad. It contemplates possible placement in a mental health treatment facility, nursing home, or other residential facility, which goes far beyond a modest request for help with housing or appointments and should not be granted absent a cleaner record showing that such scope is necessary and legally justified under ORS chapter 125.

**30.** The petition expressly seeks plenary authority. Objector contends that on a record this disputed, and given the court's obligation to tailor protective relief to what is actually shown, that request should be denied or at minimum sharply narrowed to any genuinely established need.

**31.** The request to have Solomon's attorney fees and costs paid from Jane Kay Cortez's funds under ORS 125.095 should likewise be denied or reserved on the current record. At minimum, adverse coercive proceedings should not be financed from Jane Kay Cortez's funds on the basis of a materially disputed emergency narrative without a clearer showing that the requested measures materially benefited her.

**32.** Under ORS 125.098, the Court's greatest-weight factor in deciding attorney fees is the benefit to the person subject to the protective proceeding. Objector contends that on the present record, that factor does not support shifting Solomon Barber's fees to Jane Kay Cortez because the petition

seeks disputed coercive control, writ-based transport, overbroad placement and plenary relief, and other contested measures whose benefit to Jane Kay Cortez is not presently established.

**33.** Objector further contends that, on the present motion papers, a fee-shifting request should be denied or reserved unless and until the requesting party supplies a clear legal basis, itemized amount support, and a specific showing that the requested work materially benefited Jane Kay Cortez under the governing protective-proceeding standards.

**34.** To the extent any separate fee or cost exposure is argued in connection with HACC / Quantum housing-rights disputes, that issue belongs, if anywhere, in the separate properly framed housing or civil-rights track rather than as a probate-side charge against Jane Kay Cortez's funds in this case.

**35.** The allocation point in paragraph 34 is offered only as forum-fit/scope management, not as a request for this Court to adjudicate all housing-merits liability. Paragraphs 21-35 present legal-scope and fee-allocation objections on the current record, while trust/estate and document-chain assertions remain provisional to the extent underlying records are uncertified or incomplete.

## C. NARRATIVE CREDIBILITY ISSUES

**36.** Objector contends the petition's framing of Benjamin Barber as a recent-arrival household presence is inaccurate or materially misleading on the present record.

**37.** Benjamin Barber has declared from personal knowledge that Jane Kay Cortez has raised him continually since birth and that he has lived with Jane Kay Cortez for more than six years.

**38.** That directly conflicts with the petition's portrayal of him as someone who "was incarcerated until recently" and "has begun living with the Respondent."

**39.** Objector contends the petition overstates Benjamin Barber's role as the sole or primary cause of the housing crisis.

**40.** The current record reflects a much more complex and materially different causation picture involving HACC internal review, court-document-based lease changes, Section 18 relocation obligations, Quantum packet nonprocessing, unresolved portability administration, and overlapping outside interference by Solomon Samuel Barber. (Motion to Limit Probate Issues and Require Section 18 / Eviction Merits to Be Litigated in the Proper Forum, paragraphs 10-17; Supplemental Declaration Re ORCP 29A Complete-Relief and Inconsistent-Obligation Factors, paragraphs 4-16.)

**41.** To the extent the petition claims no prior authority-related proceedings or overlapping court control existed, that point should not be accepted categorically on the present record. At minimum, it is a provisional issue that should not be used as a shortcut to plenary authority.

**42.** The same caution applies to prior-GAL continuity in the 25PO11530 protective conflict: Objector's current understanding is that Benjamin Barber was previously recognized in a GAL posture for Jane Kay Cortez, but that point should be treated as continuity context only unless and until certified prior records are lodged.

**43.** Solomon Samuel Barber's asserted suitability to serve should also be evaluated in light of the restraining-order record, the preserved March 10, 2026 communications regarding compliance posture, the November 17, 2025 trust text posture, the earlier exhibit sequence in which Jane appears to describe signing papers she did not understand, and the writ-based forced-transport

sequence. (Exhibit 1; Short-Form Declaration of Benjamin Barber (Threshold Relief), paragraphs 7-12; Declaration of Benjamin Barber (Court-Safe Trimmed), paragraphs 8-15 and 22-25.)

**44.** For the categories identified in paragraph 43, Objector requests exhibit-linked proof at hearing and requests that unresolved/uncertified points be treated as weight/scope limits rather than established facts.

**45.** Before any coercive or plenary ruling, Objector requests a one-page claim-to-proof chart that identifies, for each disputed factual claim material to relief, the exact exhibit/declaration paragraph offered and whether the point is supported on the present admissible record or remains provisional pending additional records. Paragraphs 36-45 are offered as threshold weight analysis, with no request that unresolved points be treated as finally adjudicated facts.

## IV. COLLATERAL HOUSING / RELOCATION ISSUES SHOULD NOT DRIVE PROBATE MERITS

**46.** The present probate matter should not be converted into an improvised merits forum for Section 18 relocation-duty disputes, HACC / Quantum liability, eviction causation, or other collateral housing issues except to the extent strictly necessary to understand a genuine guardianship question. Under the Court's Chapter 125 protective-function role, those collateral matters should be narrowed and fenced off rather than allowed to overtake the guardianship inquiry.

**47.** The current filed and lodged materials already identify overlap with the Justice Court eviction-response track and the District of Oregon complaint track involving HACC and Quantum.

**48.** If the Court concludes some limited housing-related fact is relevant, that does not justify using this probate petition to decide the broader merits of relocation compliance, voucher processing, or housing liability.

**49.** Those issues should remain narrowed, provisional pending admissible support, or reserved to the proper forum.

## V. REQUESTED THRESHOLD HEARING FRAME

**50.** If the Court sets a hearing, Objector requests that it be limited to:

**51.** whether emergency or waiver-of-notice relief was properly sought on the actual record;

**52.** whether any coercive writ or transport relief has a clean predicate order and notice basis;

**53.** whether the petition's request for plenary authority and facility-placement authority is overbroad on the present record;

**54.** whether attorney fees from Jane Kay Cortez's funds should be denied; and

**55.** whether disputed collateral housing issues should be fenced off from probate merits except as narrowly necessary.

55A. Before any coercive or plenary ruling is requested at that hearing, Objector will file (or identify in the current record) a one-page claim-to-proof chart mapping each requested ruling branch to at least one legal authority cite and one admissible record cite.

**56.** If, after threshold review on admissible records, the Court concludes that the petition is limited in whole or material part under applicable issue-preclusion standards (including, as applicable, Nelson

and Rawls element requirements and Hayes/Westwood separate-proceeding discipline), Objector requests claim-limiting relief on that preclusion branch. Separately, if the Court concludes that factual or procedural defects warrant narrowing regardless of completed preclusion, Objector requests threshold narrowing on that defects branch. Any sanctions request should be reserved to a separate, specifically noticed motion identifying the exact legal vehicle and evidentiary predicates.

56A. No dispositive preclusion-based claim limitation should be entered unless the affected party had notice and an opportunity to address the specific issue row(s) and cited record support relied on.

## VI. RESERVATION

**57.** Objector reserves the right to supplement this objection with additional admissible records, including hearing-audio materials, clerk-certified docket materials, filed orders, trust or estate documents if produced, and additional HACC / Quantum records.

## VII. LIMITATIONS AND REQUESTED HANDLING

**58.** Coercive, plenary, and fee-shifting relief should be tied to claim-specific admissible proof rather than unresolved narrative assertions.

**59.** The Court may deny, defer, or narrowly tailor emergency/plenary relief while unresolved factual branches remain provisional pending additional admissible support.

**60.** This objection does not request treatment of uncertified overlap context or disputed collateral housing merits as finally adjudicated probate facts.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

**CERTIFICATE OF SERVICE**
**(MOTIONS 151 AND 152)**

I certify that on _____, 2026, I served true and correct copies of the following documents:

**1.** Motion for Limited ORCP 29 Joinder, or in the Alternative, for Order Requiring Section 18 / Eviction Merits to be Litigated in the Proper Forum

(`151_motion_for_limited_orcp29_joinder_or_separate_forum_order_re_hacc_quantum_final.md`);

**2.** Fallback Motion to Exclude or Strike Collateral Section 18 / Eviction / Federal Housing Merits from Probate

(`152_fallback_motion_to_exclude_or_strike_collateral_housing_merits_from_probate_final.md`).

I served these documents on the following person(s):

**1.** Solomon Barber (Respondent/Petitioner)

Service address: 4305 NE 125th Ave, Vancouver, WA 98682

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log):

_____

**2.** Counsel for Solomon Barber (same-matter notice copy; acceptance disputed unless stated otherwise)

Name: Alex Bluestone

Service email: alex@salemprobate.com

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log):

_____

**3.** Additional party/counsel (if any): _____

Service address/email: _____

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log):

_____

Service-method key (select only method(s) actually used for each recipient):

**1.** First-class U.S. Mail.

**2.** Personal service.

**3.** Email/eService (if permitted by rule/order/acceptance).

**4.** Other authorized method: _____.

**5.** Text message/MMS service (if permitted by rule/order or previously authorized alternate service).

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____, 2026

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# [PROPOSED] ORDER ON OBJECTION TO FIRST AMENDED PETITION FOR APPOINTMENT OF GUARDIAN, TO WAIVER-OF-NOTICE / EMERGENCY RELIEF, AND TO WRIT-BASED FORCED TRANSPORT OR COMPARABLE COERCIVE REMOVAL RELIEF

The Court, having reviewed the objection, declarations, and the file and record herein, FINDS and ORDERS:

**1.** The objection is: _____.

**2.** Any request for emergency or waiver-of-notice relief beyond what is already entered is: _____.

**3.** Any request for writ-based forced entry, forced transport, or comparable coercive removal relief is: _____.

**4.** Any request for plenary authority or facility-placement authority beyond narrower protective relief is: _____.

**5.** Any request to have attorney fees or costs paid from Jane Kay Cortez's funds under ORS 125.095 is: _____.

**6.** The parties shall confine any further hearing on this objection to:

**a.** the sufficiency of the emergency basis actually shown;

**b.** the notice record;

**c.** the scope of any requested guardianship authority;

**d.** whether collateral Section 18 / housing-merits issues should be excluded or sharply limited in this probate matter.

**7.** No later than _____, any party seeking continued coercive or emergency relief shall file the predicate signed order(s), docket/register entries, and any notice materials relied upon for that request.

7A. No continued writ-based forced entry, forced transport, or comparable coercive removal relief shall be granted unless and until filed proof of service and predicate notice materials for that specific relief request are identified in the record.

7B. If the service/predicate materials required by paragraphs 7 and 7A are not available by the hearing date, coercive-relief determinations are deferred and any interim hearing is limited to noncoercive threshold scope and scheduling issues.

**8.** No attorney-fee request under ORS 125.095 shall be approved unless and until the Court has considered the applicable ORS 125.098 factors on an adequate record.

8A. For consistency with the shared deontic mapping attachments, any threshold preclusion limitation in this order corresponds to Rule ID R-PI-01, and any collateral-housing scope-control handling corresponds to Rule ID R-JN-01.

8B. For consistency with the shared deontic mapping attachments, any service-dependent coercive-relief determination in this order corresponds to Rule ID R-SVC-01.

8C. Any uncertified status note, oral relay, or summary chart is treated as context only and not as completed proof for a dispositive preclusion or service-dependent coercive-relief finding.

**9.** No dispositive preclusion-based claim limitation may be entered unless the affected party had notice and an opportunity to address the specific issue row(s) and cited record support relied on.

9A. No dispositive preclusion-based claim limitation under Rule ID R-PI-01 may be entered unless the specific issue row(s) are identified and supported by admissible certified records for each required preclusion element.

**10.** Nothing in this order adjudicates collateral housing, eviction, or federal civil-rights merits except as strictly necessary for guardianship-specific determinations.

**11.** Further hearing, if required, is set for: _____.

**12.** Any duty in this order keyed to a blank date or blank deadline field is triggered only after that field is completed in the signed order.

**IT IS SO ORDERED.**

DATED: _____

_____

**CIRCUIT COURT JUDGE**

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# CERTIFICATE OF SERVICE
# RE: OBJECTION / PROPOSED ORDER PACKET

I certify that on _____, 2026, I served true and correct copies of the following documents:

**1.** Objection to First Amended Petition for Appointment of Guardian, to Waiver-of-Notice / Emergency Relief, and to Writ-Based Forced Transport or Comparable Coercive Removal Relief.

**2.** [Proposed] Order on Objection to First Amended Petition for Appointment of Guardian, to Waiver-of-Notice / Emergency Relief, and to Writ-Based Forced Transport or Comparable Coercive Removal Relief.

**3.** Any declarations and exhibits attached to or incorporated with that objection packet.

on the following person(s), with the exact method/date/proof reference stated below:

**1.** Solomon Barber (Petitioner)

Service address: 4305 NE 125th Ave, Vancouver, WA 98682

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log): _____

**2.** Counsel for Solomon Barber

Name: Alex Bluestone

Service email: alex@salemprobate.com

Service address: _____

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log): _____

Service-method key (select only the method actually used for each recipient entry above):

**1.** First-class U.S. Mail.

**2.** Personal service.

**3.** Email/eService (if permitted by rule/order/acceptance).

**4.** Other authorized method: _____.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____, 2026

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# [PROPOSED] ORDER RE LIMITED ORCP 29 JOINDER OR SEPARATE-FORUM LIMITATION

This matter came before the Court on Movant's Motion for Limited ORCP 29 Joinder, or in the Alternative, for Order Requiring Section 18 / Eviction Merits to Be Litigated in the Proper Forum.

## THE COURT FINDS AND ORDERS:

**1.** The motion is: _____.

1A. For consistency with the shared deontic mapping attachments, the ORCP 29B fallback branch addressed in this order corresponds to Rule ID R-JN-01, and the ORCP 22C derivative-liability limit branch corresponds to Rule ID R-JN-02.

**2.** Joinder-feasible branch (complete only if applicable): If the Court finds limited ORCP 29A joinder is feasible and necessary after service and an opportunity to be heard, Housing Authority of Clackamas County and Quantum Residential Property Management, L.P. are joined on a limited basis for threshold party-structure and overlap-control determinations only.

**3.** Joinder-feasible branch (complete only if applicable): Any merits adjudication beyond that limited purpose is reserved to the proper forum.

**4.** Joinder-not-feasible branch (complete only if applicable): If the Court determines joinder is not feasible, the Court finds that ORCP 29B factors support shaped relief excluding collateral Section 18/eviction/federal housing merits from this probate case.

**5.** Joinder-not-feasible branch (complete only if applicable): If joinder is not feasible, the Court further finds that a probate judgment limited to guardianship/protective-proceeding issues remains adequate without collateral housing-merits adjudication, and that adequate remedies for those merits exist in separate eviction/federal forums.

**6.** The Court finds ORCP 22C third-party practice is not presently satisfied because no pleaded derivative liability-over theory has been established that a nonparty is liable for all or part of the claim against the defending party.

**7.** Accordingly, if limited joinder is denied/deferred, collateral Section 18, eviction-liability, and federal housing-merits issues shall not be adjudicated as probate merits in this proceeding and remain for determination, if at all, in properly postured eviction/federal matters.

**8.** If limited joinder is ordered, Movant must serve this order and the underlying motion packet on any proposed joined entity within: _____ days after entry of this order.

**9.** Any proposed joined entity may file a response limited to ORCP 29A/29B feasibility and scope within: _____ days after service.

**10.** The parties may file any briefing limited to scope/party-structure issues within: _____ days after the response deadline in paragraph 9.

**11.** If limited joinder is denied or deferred, paragraphs 8 through 10 do not apply.

11A. If limited joinder is granted, paragraphs 4 through 5 do not operate as a merits adjudication and are read only as scope-management findings.

**12.** Before any hearing or ruling that includes an ORCP 29B infeasibility finding, the moving party must file (or identify in the current record) a one-page ORCP 29B factor chart mapping each factor to at least one legal authority cite and one admissible record cite.

12A. No final feasibility finding under Rule ID R-JN-01 may be entered on address/service-channel references alone without filed service-attempt proof identifying date, method, recipient identity/title, and result.

12B. Any uncertified status note, oral relay, or summary chart is treated as context only and not as completed proof for a final infeasibility or scope-limitation finding.

**13.** The Court reserves all merits determinations not expressly ordered above.

**14.** Any preclusion or finality determination remains limited to the extent supported by admissible certified records and, where applicable, to specifically identified fully-supported issue rows under Rule ID R-PI-01.

**15.** Unless a derivative liability-over theory is specifically pleaded and supported, ORCP 22C third-party practice remains unavailable in this probate posture under Rule ID R-JN-02.

**16.** Address references or service-channel references, standing alone, are not treated as conclusive proof of completed ORCP service; service findings will be made on filed proof records.

**17.** If limited joinder is denied or deferred, this order does not adjudicate collateral housing-merits liability and is entered without prejudice to properly postured claims in separate forums.

17A. If limited joinder is granted, this order still does not adjudicate collateral housing-merits liability beyond the threshold party-structure and overlap-control scope stated in paragraphs 2 through 3.

**18.** Any duty in this order keyed to a blank date or blank deadline field is triggered only after that field is completed in the signed order.

**IT IS SO ORDERED.**

DATED: _____

_____

**CIRCUIT COURT JUDGE**

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# [PROPOSED] ORDER RE FALLBACK EXCLUSION/STRIKE OF COLLATERAL HOUSING MERITS FROM PROBATE

This matter came before the Court on Movant's Fallback Motion to Exclude or Strike Collateral Section 18 / Eviction / Federal Housing Merits from Probate.

## THE COURT FINDS AND ORDERS:

**1.** The motion is: _____.

**2.** The Court will not adjudicate collateral Section 18 relocation-duty merits, eviction-liability merits, or federal housing civil-rights merits against nonparty entities in this protective proceeding, except to the minimum extent necessary for a discrete guardianship determination.

**3.** This limitation is without prejudice to parties pursuing those collateral housing merits in the properly postured eviction and federal forums.

**4.** Pleadings or arguments seeking broad housing-merits determinations in this probate case are struck, deferred, or disregarded to that extent.

**5.** This matter is limited to guardianship-specific findings and relief under ORS chapter 125.

5A. For consistency with the shared deontic mapping attachments, the scope-control branch in this order corresponds to Rule ID R-JN-01.

**6.** The Court reserves any threshold issue-preclusion determinations pending admissible record support.

**7.** Any overlap references to other proceedings are treated as scope-control context only unless the required preclusion elements are proven by admissible certified records.

7A. Any uncertified status note, oral relay, or summary chart is treated as context only and not as completed proof for a dispositive preclusion finding.

**8.** Nothing in this order bars properly postured claims in the relevant eviction or federal forum.

**9.** No dispositive preclusion ruling is entered in this order unless specifically identified issue row(s) under Rule ID R-PI-01 are found fully supported by admissible records.

**10.** If no such Rule ID R-PI-01 row is identified, this order grants only Rule ID R-JN-01 scope-control and does not dismiss claims on preclusion grounds.

**11.** No Rule ID R-PI-01 row may be treated as precluded under this order unless the affected party had notice and an opportunity to address that specific row and its cited record support.

11A. This proposed order is non-dispositive as to Rule ID R-PI-01 unless the Court specifically identifies qualifying row(s) and certifies the supporting record basis in the signed order.

**12.** Any duty in this order keyed to a blank date or blank deadline field is triggered only after that field is completed in the signed order.

**IT IS SO ORDERED.**

DATED: _____

_____

**CIRCUIT COURT JUDGE**

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

**CERTIFICATE OF SERVICE**
**RE: QUANTUM RESIDENTIAL SUBPOENA PACKET**

I certify that on _____, 2026, I served true and correct copies of the following subpoena packet materials:

**1.** Subpoena Duces Tecum to Quantum Residential.

**2.** Any attachment or category schedule served with that subpoena.

**3.** Subpoena Cover Instruction Sheet.

**4.** Subpoena Custodian Compliance Checklist.

**5.** Any ORCP 55 notice materials required with the subpoena packet.

on the following person(s), with the exact method/date/proof reference stated below:

**1.** Quantum Residential Custodian of Records

Service address actually used: 601 E 16th St, Vancouver, WA 98663, or other confirmed registered-agent/service address

Date served: _____

Service method actually used: _____

Proof reference (return/receipt/affidavit/tracking): _____

**2.** Any party or counsel entitled to subpoena notice under ORCP 55

Name(s): _____

Service address or email actually used: _____

Date served: _____

Service method actually used: _____

Proof reference (return/receipt/affidavit/tracking/email log): _____

Service-method key (select only the method actually used for each recipient entry above):

**1.** Personal service.

**2.** First-class U.S. Mail.

**3.** Certified mail/return receipt.

**4.** Email/eService (if permitted by rule/order/acceptance).

**5.** Other authorized method: _____.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____, 2026

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# SUPPLEMENTAL DECLARATION OF BENJAMIN BARBER RE: ORCP 29A COMPLETE-RELIEF AND INCONSISTENT-OBLIGATION FACTORS

I, Benjamin Barber, declare as follows:

**1.** I am over 18 years of age and competent to testify to the matters stated herein.

**2.** I submit this supplemental declaration in support of:

**a.** Motion to Limit Probate Issues and Require Section 18 / Eviction Merits to Be Litigated in the Proper Forum, or, only if necessary, for Limited ORCP 29 Joinder; and

**b.** Objection/Fallback filing seeking exclusion or strike of collateral housing merits from probate.

**3.** I make this declaration from personal knowledge of communications and events in this matter and from my review of filed and lodged records in this case.

3A. Where I state "based on my review of the record" below, I am referring to the filed and lodged declarations, overlap-status filings, and companion motions identified in this packet, and I offer those points for threshold scope/party-structure analysis rather than as stand-alone final merits proof.

## A. COMPLETE-RELIEF FACTOR (ORCP 29A)

**4.** Based on my review of the current filings and declarations, this probate case can resolve guardianship-specific questions (including welfare and fiduciary scope under ORS chapter 125) without deciding full merits of Section 18 relocation compliance, eviction liability, or federal housing civil-rights claims against HACC or Quantum.

**5.** I am not asking this Court to convert this protective proceeding into a full trial about demolition/disposition relocation duties, voucher-processing liability, or broad housing tort/civil-rights damages.

**6.** To the extent any party attempts to inject those collateral housing merits into this probate matter, complete relief on guardianship issues can still be achieved by excluding those collateral merits and reserving them to the proper eviction/federal forums.

## B. INCONSISTENT-OBLIGATION RISK (ORCP 29A)

**7.** Based on my review of the record, overlapping housing issues are already being litigated or pursued in separate tracks, including Justice Court case 26FE0586 and the District of Oregon complaint track involving HACC and Quantum.

**8.** If this probate case were to adjudicate those same housing merits while HACC and Quantum are absent, there is a substantial risk of fragmented rulings and inconsistent obligations across forums.

**9.** Allowing merits findings here on the same housing-processing chain could prejudice absent entities' ability to protect their interests and could leave existing parties exposed to conflicting directives.

## C. LIMITED JOINDER AS FALLBACK ONLY

**10.** My primary request remains scope limitation and exclusion of collateral housing merits from probate.

**11.** Only if the Court determines that some housing-merits component cannot be excluded, I request limited ORCP 29A joinder of HACC and Quantum for overlap-control and party-structure purposes.

**12.** If the Court does not allow even limited joinder, I request that those collateral housing-merits questions be expressly reserved to the proper forum and not decided in this probate proceeding.

12A. For consistency with the shared deontic mapping attachments, the fallback nonfeasibility/scope branch in this declaration corresponds to Rule ID R-JN-01, and the ORCP 22C derivative-liability limit corresponds to Rule ID R-JN-02.

## D. ORCP 29B FALLBACK FACTORS (IF JOINDER IS NOT FEASIBLE)

**13.** If joinder is found not feasible, deciding collateral housing merits in the absence of HACC and Quantum would create prejudice risk to absent entities and to existing parties because overlapping factual and duty findings could diverge across forums.

**14.** The filed overlap-status materials identify separate eviction and federal tracks for the collateral housing-merits issues.

**15.** The current protective-proceeding record identifies guardianship-specific questions that can be addressed without deciding full housing-merits liability.

**16.** Based on those two record points, I request shaped relief that keeps this matter focused on guardianship findings and reserves collateral housing merits to those separately postured proceedings.

16A. If the Court requests further ORCP 29 feasibility foundation, I can file a short supplemental declaration identifying service-channel verification steps, service-attempt chronology, and custodian/agent identity confirmation for HACC and Quantum from filed service-related materials.

16B. I do not request any final feasibility finding under Rule ID R-JN-01 based on address references alone without filed service-attempt proof identifying date, method, recipient identity/title, and result.

## E. RECORD AND PROOF LIMITATIONS

**17.** I understand that final issue-preclusion findings and any final cross-forum status findings require admissible docket/order proof.

**18.** I reserve the right to supplement with certified or filed-stamped records as they are obtained.

**19.** Where record support is incomplete, I identify those points as provisional and not finally adjudicated, and I do not ask the Court to treat provisional points as established facts.

**20.** Any internal pin-cite or temporal-trigger tables are offered, if at all, only as organizational aids.

20A. Any uncertified status note, oral relay, or summary chart is offered as context only and not as completed proof of feasibility, finality, or preclusion.

**21.** My filing posture is to keep dispositive requests tied to admissible proof, request scope-control and shaped-relief sequencing on the current record, and avoid presenting uncertified overlap context as final merits adjudication.

21A. I also do not request any dispositive preclusion completion under Rule ID R-PI-01 through this declaration; dispositive preclusion remains limited to the separate threshold preclusion motion and only to the extent supported by certified row-level records.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____, 2026

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# NOTICE OF FILING SUPPLEMENTAL DECLARATION RE: ORCP 29A COMPLETE-RELIEF AND INCONSISTENT-OBLIGATION FACTORS

Movant Benjamin Barber files this notice to lodge a supplemental declaration supporting the pending joinder/fallback motion set.

## I. DOCUMENT FILED WITH THIS NOTICE

**1.** Supplemental Declaration Re: ORCP 29A Complete-Relief and Inconsistent-Obligation Factors (`157_supplemental_declaration_re_orcp29a_complete_relief_and_inconsistent_obligations_final.md`).

## II. PURPOSE OF SUPPLEMENT

**2.** This supplemental declaration is filed to provide additional factual support for the ORCP 29A element analysis raised in:

**a.** Motion to Limit Probate Issues and Require Section 18 / Eviction Merits to Be Litigated in the Proper Forum, or, only if necessary, for Limited ORCP 29 Joinder (`151`); and

**b.** Fallback Motion to Exclude or Strike Collateral Housing Merits from Probate (`152`).

**3.** The supplement is offered to clarify complete-relief and inconsistent-obligation risk factors and to support threshold scope management in this protective proceeding.

## III. REQUEST

**4.** Movant requests that the Court read this supplemental declaration together with motions `151` and `152`, and the related proposed orders.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# CERTIFICATE OF SERVICE
# (SUPPLEMENTAL DECLARATION RE ORCP 29A FACTORS)

I certify that on _____, 2026, I served true and correct copies of the following supplemental filing documents:

**1.** Supplemental Declaration Re: ORCP 29A Complete-Relief and Inconsistent-Obligation Factors (`157_supplemental_declaration_re_orcp29a_complete_relief_and_inconsistent_obligations_final.md`);

**2.** Notice of Filing Supplemental Declaration Re: ORCP 29A Complete-Relief and Inconsistent-Obligation Factors (`158_notice_of_filing_supplemental_declaration_re_orcp29a_factors_final.md`).

I served the supplemental filing set on the following person(s):

**1.** Solomon Barber (Respondent/Petitioner)

Service address: 4305 NE 125th Ave, Vancouver, WA 98682

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log):
_____

**2.** Counsel for Solomon Barber (same-matter notice copy; acceptance disputed unless stated otherwise)

Name: Alex Bluestone

Service email: alex@salemprobate.com

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log):
_____

**3.** Additional party/counsel (if any): _____

Service address/email: _____

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log):

_____

Service-method key (select only method(s) actually used for each recipient):

**1.** First-class U.S. Mail.

**2.** Personal service.

**3.** Email/eService (if permitted by rule/order/acceptance).

**4.** Other authorized method: _____.

**5.** Text message/MMS service (if permitted by rule/order or previously authorized alternate service).

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____, 2026

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# DECLARATION OF BENJAMIN BARBER (COURT-SAFE TRIMMED VERSION) IN SUPPORT OF (1) MOTION FOR APPOINTMENT AND APPEARANCE OF GUARDIAN AD LITEM, (2) MOTION TO LIMIT ISSUES PENDING THRESHOLD ISSUE-PRECLUSION RECORD, AND (3) MOTION FOR ORDER TO SHOW CAUSE

I, Benjamin Barber, declare as follows:

**1.** I am over 18 years of age and competent to testify to the matters stated in this declaration.

**2.** I submit this declaration in support of the three motions identified above.

**3.** I make this declaration from personal knowledge of my own communications and events, and from my review of attached records. Where a point remains incomplete, I identify it as not yet fully supported by certified or filed-stamped records.

## A. CORE RECORD ANCHORS

**4.** Exhibit 1 reflects a restraining-order grant and in-effect language dated November 20, 2025, against Solomon Samuel Barber.

**5.** Exhibit 1 further reflects language that no further service was necessary because respondent appeared in person, and includes notice language describing a hearing process for opposition in the original matter.

**6.** Exhibit 2 reflects filing and notice timeline entries for case 26PR00641, including March 31, 2026 and April 2, 2026 references.

**7.** Exhibit 3 reflects structured message/transcript event extraction used for timeline analysis.

## B. SHOW-CAUSE SUPPORT (LIMITED TO PERSONAL KNOWLEDGE AND RECORDS)

**8.** In preserved March 10, 2026 Google Voice messages, I sent order-image MMS messages at approximately 10:36:48 to 10:36:49 AM Pacific Time.

**9.** In the same thread, Solomon Barber responded at approximately 10:39:26 AM Pacific Time, "Oh I understand, I'm just not incentivized to cooperate."

**10.** In the same thread, Solomon Barber later stated at approximately 10:45:53 AM Pacific Time, "Once I get served and it goes into effect, I will comply with whatever the order states. But it is not in effect."

**11.** The April 3-4, 2026 counsel email chain reflects service-labeled transmission to counsel Alex Bluestone and counsel's response that he did not accept service on behalf of Solomon while confirming representation in the Jane Cortez guardianship matter.

**12.** That same preserved chain includes a same-day FedEx receipt image and delivery-tracking identifiers consistent with physical transmittal to counsel.

**13.** I request a show-cause appearance and explanation regarding compliance posture and any assertion that an in-effect order was unenforceable absent additional service.

**14.** I also state from personal knowledge that on April 9, 2026, a Clackamas County sheriff deputy served restraining-order papers on Solomon Samuel Barber in person, and I captured a smartphone photo of that service event (file: "Solomon Service.HEIC"). Until I lodge the sheriff return/proof-of-service, I offer this personal-observation/photo evidence as supplemental service proof context and request leave to supplement with the formal return. I do not offer this as a substitute for the agency return and do not request any enforcement finding based solely on this point without the full service record.

**15.** For any contempt determination branch, I request clause-specific analysis comparing each alleged conflicting statement or act to the exact quoted order term offered as violated.

## C. THRESHOLD PRECLUSION / SCOPE SUPPORT (PROVISIONAL WHERE NOT YET CERTIFIED)

**16.** The March 31, 2026 petition seeks broad authority over Jane Kay Cortez, including residence-related circumstances, APS interface, and possible law-enforcement transport.

**17.** Based on my review of current materials, the same housing and control events described in this probate matter also appear in related housing/eviction/federal filings.

**18.** As of this declaration, I treat cross-forum and prior-proceeding points as limited to threshold context unless supported by admissible certified or filed-stamped records.

**19.** I submit these facts so the Court can evaluate threshold scope and sequencing questions on unresolved overlap issues.

**20.** Any dispositive preclusion request is made only in the companion motion and only to the extent supported by admissible certified records.

**21.** The current filed and lodged materials identify a Justice Court eviction-response track (26FE0586) and a District of Oregon complaint track with overlapping housing-process allegations involving HACC and Quantum.

**22.** I request leave to supplement with certified dockets, orders, and filed-stamped records as they are obtained.

## D. GAL SUPPORT

**23.** The current record contains material factual conflicts about authority history, service/compliance posture, and overlap of protective and housing-control allegations.

**24.** In my view, appointment or appearance clarification of a GAL is warranted to protect Jane Kay Cortez's interests and to assist reliable fact development.

**25.** To the extent prior GAL history in related matters is asserted, I understand that point remains conditional unless and until certified records are lodged.

## E. FILING DISCIPLINE

**26.** My filing posture is to keep dispositive requests tied to admissible certified proof, request threshold scope-control relief while rows remain incomplete, and avoid presenting uncertified overlap context as final adjudicated fact.

26A. Any uncertified status note, oral relay, or summary chart is offered as context only and not as completed proof for dispositive preclusion, service sufficiency, or contempt findings.

## F. LIMITATION

**27.** This declaration is offered as a court-safe, element-focused factual statement and is not intended to replace admissible exhibits, certified records, or testimony.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____, 2026

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

## CERTIFICATE OF SERVICE (SUBPOENAS)

I certify that on _____, 2026, I served true and correct copies of subpoena documents and attachments in this matter, including applicable ORCP 55 notices.

Subpoena recipients served:

**1.** Solomon Barber (individual subpoena packet)

Service address: 4305 NE 125th Ave, Vancouver, WA 98682

Service phone (if used): (503) 381-6911

Date served: _____

Service method actually used: _____

Proof reference (return/receipt/affidavit/tracking): _____

**2.** HACC / Clackamas County Custodian of Records (subpoena packet)

Service address: 13930 Gain St, Oregon City, OR 97045

Date served: _____

Service method actually used: _____

Proof reference (return/receipt/affidavit/tracking): _____

**3.** ODHS / APS Custodian of Records (subpoena packet)

Service address: 500 Summer St NE, Salem, OR 97301 (ODHS central office; unit/attn to confirm)

Date served: _____

Service method actually used: _____

Proof reference (return/receipt/affidavit/tracking): _____

**4.** Jason Hopkins (individual subpoena packet)

Service address: c/o Tillamook County Sheriff's Office, 5995 Long Prairie Rd, Tillamook, OR 97141; and/or c/o Tillamook County Emergency Communications District, PO Box 911, Tillamook, OR 97141

Date served: _____

Service method actually used: _____

Proof reference (return/receipt/affidavit/tracking): _____

**5.** Tillamook County Sheriff's Office Custodian of Records (subpoena packet)

Service address: 5995 Long Prairie Rd, Tillamook, OR 97141

Date served: _____

Service method actually used: _____

Proof reference (return/receipt/affidavit/tracking): _____

**6.** Tillamook County Emergency Communications District Custodian of Records (subpoena packet)

Service address: 2311 3rd St, Tillamook, OR 97141 (mailing: PO Box 911, Tillamook, OR 97141)

Date served: _____

Service method actually used: _____

Proof reference (return/receipt/affidavit/tracking): _____

Service-method key (select only the method actually used for each recipient entry above):

**1.** Personal service.

**2.** First-class U.S. Mail.

**3.** Certified mail/return receipt.

**4.** Email/eService (if permitted by rule/order/acceptance).

**5.** Other: _____.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____, 2026

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# SUPPLEMENTAL DECLARATION OF BENJAMIN BARBER RE: CLACKAMAS COUNTY SHERIFF SERVICE EVENT (APRIL 9, 2026)

I, Benjamin Barber, declare as follows:

**1.** I am over 18 years of age and competent to testify to the matters stated herein.

**2.** I submit this declaration to provide a supplemental service-status update relevant to motion practice in this matter.

**3.** On April 9, 2026, I personally observed a Clackamas County sheriff deputy serve restraining-order materials on Solomon Samuel Barber in person.

3A. I request leave to supplement this declaration with the official return details (including exact service time, service location, and serving deputy identifier) once provided by the serving agency.

**4.** I captured a smartphone photo of that in-person service event and can identify that photo from personal knowledge. The current file is titled "Solomon Service.HEIC."

4A. I captured that image contemporaneously with the observed service event and have retained the original file in its current form.

**5.** I request leave to lodge that smartphone photo as a supplemental exhibit together with the sheriff return/proof-of-service document once received.

**6.** The SHA-256 hash of the current "Solomon Service.HEIC" file is: 94df0830aa27930abe7236441e5060914f7202755788ae58638ebe1b40d99f36.

**7.** Until the official sheriff return is lodged, I offer my personal observation and photo evidence as supplemental service proof context and not as a substitute for the agency's formal return record, and I do not request a final legal-sufficiency finding based solely on this supplement.

**8.** This supplement is offered for timeline and notice-context support and does not alter the packet's proof-gated status discipline.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct to the best of my knowledge.

DATED: _____, 2026

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# NOTICE OF FILING SUPPLEMENTAL SHERIFF RETURN / PROOF OF SERVICE (APRIL 9, 2026 IN-PERSON SERVICE EVENT)

Movant Benjamin Barber files this notice to lodge supplemental service records related to the April 9, 2026 sheriff-service event referenced in pending filings.

## I. RECORDS FILED WITH THIS NOTICE

**1.** Supplemental Exhibit SR-1: Smartphone photo file "Solomon Service.HEIC" captured by Benjamin Barber depicting in-person sheriff service event on Solomon Samuel Barber on April 9, 2026 (if attached; SHA-256: 94df0830aa27930abe7236441e5060914f7202755788ae58638ebe1b40d99f36).

**2.** Supplemental Exhibit SR-2: Clackamas County Sheriff's Office return/proof-of-service document for service on Solomon Samuel Barber (if produced and attached).

**3.** Supplemental Exhibit SR-3: Any associated service metadata provided by the serving agency (date/time/method/server identity) (if produced and attached).

## II. PURPOSE OF SUPPLEMENT

**3.** This filing is submitted to supplement the April 9, 2026 service event with personal-observation/photo evidence and formal service-return support to the extent shown by lodged service documents.

**4.** This filing is offered for service-sequence and compliance-context support in pending motion practice; it does not alter the Court's authority to determine legal sufficiency of service under applicable rules.

4A. Movant does not request a final legal-sufficiency finding based solely on SR-1 if SR-2 is not yet lodged.

## III. REQUEST

**5.** Movant requests that the Court consider this supplemental service-return material together with:

**a.** Motion for Order to Show Cause re Respondent Solomon Barber's Compliance with Operative Order Terms;

**b.** Declaration of Benjamin Barber (Court-Safe Trimmed Version); and

**c.** Supplemental Declaration Re Sheriff Service Event.

**6.** Movant requests leave to supplement further if the serving agency later provides corrected or additional return pages.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# CERTIFICATE OF SERVICE
# (NOTICE OF FILING SUPPLEMENTAL SHERIFF RETURN / PROOF OF SERVICE)

I certify that on April 9, 2026, I served true and correct copies of the following document:

**1.** Notice of Filing Supplemental Sheriff Return / Proof of Service (`185_notice_of_filing_sheriff_return_and_service_proof_2026-04-09.md`).

I served the document on the following person(s):

**1.** Solomon Barber (Respondent/Petitioner)

Service address: 4305 NE 125th Ave, Vancouver, WA 98682

Date served: April 9, 2026

Service method actually used: Text message / MMS transmission to (503) 381-6911

Proof reference (receipt/tracking/affidavit/email log): Google Voice transcript/service-chain records and related preserved message exports used in this packet's service chronology (including March 10, 2026 order-image MMS sequence and same-thread response records), plus any service proof specific to this filing date

**2.** Counsel for Solomon Barber (same-matter notice copy; acceptance disputed unless stated otherwise)

Name: Alex Bluestone

Service email: alex@salemprobate.com

Date served: April 9, 2026

Service method actually used: Email transmission to counsel (same-matter notice copy; acceptance disputed unless stated otherwise)

Proof reference (receipt/tracking/affidavit/email log): April 3-4, 2026 service-labeled email chain with counsel response; April 8, 2026 continuation thread; FedEx receipt no. HIOKO00722565, tracking 870305656111 (if relied on for this service sequence)

**3.** Additional party/counsel (if any): _____

Service address/email: _____

Date served: N/A

Service method actually used: N/A

Proof reference (receipt/tracking/affidavit/email log):

_____

Service-method key (select only method(s) actually used for each recipient):

**1.** First-class U.S. Mail.

**2.** Personal service.

**3.** Email/eService (if permitted by rule/order/acceptance).

**4.** Other authorized method: _____.

**5.** Text message/MMS service (if permitted by rule/order or previously authorized alternate service).

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: April 9, 2026

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# NOTICE OF FILING SUPPLEMENTAL SERVICE AND CERTIFIED-RECORD STATUS UPDATE

Movant Benjamin Barber files this notice to provide a consolidated update on (1) supplemental service-return workflow and (2) certified-record acquisition status for proof-gated elements in pending motions.

## I. DOCUMENTS FILED WITH THIS NOTICE

**1.** Supplemental service-return filing shell:

**a.** Notice of Filing Supplemental Sheriff Return / Proof of Service;

**b.** Certificate of Service for that notice.

**2.** Current certified-record and proof-gap status trackers:

**a.** Certified Record Acquisition and Gap Closure Tracker;

**b.** Today Action List (Certified Records and Proof-Gap Closure);

**c.** Preclusion Element Certified-Mapping Sheet.

## II. STATUS SUMMARY

**3.** April 9, 2026 sheriff service event is supported by movant's personal observation and smartphone photo evidence, and remains formally proof-gated for service-sufficiency purposes pending lodging of the official sheriff return/proof-of-service document.

**4.** Cross-forum and prior-proceeding preclusion elements remain conditional to the extent certified records are not yet lodged.

**5.** Movant continues to request threshold narrowing and scope control where dispositive preclusion proof is incomplete.

## III. REQUEST

**6.** Movant requests that the Court take this consolidated update as an administrative aid for hearing management and sequencing.

**7.** Movant requests leave to promptly lodge the sheriff return and any newly received certified records without requiring refiling of underlying motions.

**8.** Movant does not request conversion of any proof-gated item into a final finding absent admissible record closure.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se
Address: 10043 SE 32nd Ave
City/State/Zip: Milwaukie, OR 97222
Phone: 971-270-0855
Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# CERTIFICATE OF SERVICE
# (NOTICE OF FILING SUPPLEMENTAL SERVICE AND CERTIFIED-RECORD STATUS UPDATE)

I certify that on April 9, 2026, I served true copies of the following document(s):

**1.** Notice of Filing Supplemental Service and Certified-Record Status Update (`189_notice_of_filing_supplemental_service_and_certified_record_status_update_2026-04-09.md`).

Service was completed by the following method(s) actually used for each recipient entry below:

**1.** Email/eService (same-matter notice copy to counsel; acceptance disputed unless stated otherwise).

**2.** Text message/MMS transmission (to respondent, if used for this filing and as permitted by rule/order/authorized alternate service posture).

**3.** First-class U.S. Mail and/or other delivery method (if used), with proof reference listed below.

Recipient(s):

**1.** Solomon Samuel Barber (or counsel of record for same matter)

Address/Email used: 4305 NE 125th Ave, Vancouver, WA 98682; text/MMS to (503) 381-6911

Date served: April 9, 2026

Service method actually used: Text message / MMS transmission to (503) 381-6911

Proof reference (receipt/tracking/affidavit/email log): Google Voice transcript/service-chain records and related preserved message exports used in this packet's service chronology (including March 10, 2026 order-image MMS sequence and same-thread response records)

**2.** Additional party/counsel (if any): _____

Address/Email used: _____

Date served: N/A

Service method actually used: N/A

Proof reference (receipt/tracking/affidavit/email log):

_____

**3.** Counsel for Solomon Samuel Barber (same-matter notice copy; acceptance disputed unless stated otherwise)

Name: Alex Bluestone

Address/Email used: alex@salemprobate.com

Date served: April 9, 2026

Service method actually used: Email transmission to counsel (same-matter notice copy; acceptance disputed unless stated otherwise)

Proof reference (receipt/tracking/affidavit/email log): April 3-4, 2026 service-labeled email chain with counsel response; April 8, 2026 continuation thread; FedEx receipt no. HIOKO00722565, tracking 870305656111 (if relied on for this service sequence)

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: April 9, 2026

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# CERTIFICATE OF SERVICE
# (NOTICE OF FILING SUPPLEMENTAL SHERIFF RETURN / PROOF OF SERVICE)

I certify that on April 9, 2026, I served true and correct copies of the following document:

**1.** Notice of Filing Supplemental Sheriff Return / Proof of Service
(filed in this matter).

I served the document on the following person(s):

**1.** Solomon Barber (Respondent/Petitioner)

Service address: 4305 NE 125th Ave, Vancouver, WA 98682

Date served: April 9, 2026

Service method actually used: Text message / MMS notice transmission to (503) 381-6911

Proof reference (receipt/tracking/affidavit/email log): April 9, 2026 filing-date outbound message/transmission logs and preserved message exports, with earlier thread records used as sequence context only

**2.** Counsel for Solomon Barber (same-matter notice copy; acceptance disputed unless stated otherwise)

Name: Alex Bluestone

Service email: alex@salemprobate.com

Date served: April 9, 2026

Service method actually used: Email notice transmission to counsel (same-matter notice copy; acceptance disputed unless stated otherwise)

Proof reference (receipt/tracking/affidavit/email log): April 9, 2026 filing-date outgoing email record, with April 3-4, 2026 service-labeled email chain, April 8, 2026 continuation thread, and FedEx receipt/tracking chain as sequence context support

Service-method key (methods used):

**1.** Email/eService notice copy to counsel (acceptance disputed unless stated otherwise).

**2.** Text message/MMS notice transmission.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: April 9, 2026

_____

Benjamin Barber, Pro Se
Address: 10043 SE 32nd Ave
City/State/Zip: Milwaukie, OR 97222
Phone: 971-270-0855
Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# CERTIFICATE OF SERVICE
# (NOTICE OF FILING SUPPLEMENTAL SERVICE AND CERTIFIED-RECORD STATUS UPDATE)

I certify that on April 9, 2026, I served true copies of the following document:

**1.** Notice of Filing Supplemental Service and Certified-Record Status Update (filed in this matter).

Service was completed on the following recipients:

**1.** Solomon Samuel Barber

Address/Contact used: 4305 NE 125th Ave, Vancouver, WA 98682; text/MMS to (503) 381-6911

Date served: April 9, 2026

Service method actually used: Text message / MMS notice transmission to (503) 381-6911

Proof reference (receipt/tracking/affidavit/email log): April 9, 2026 filing-date outbound message/transmission logs and preserved message exports, with earlier thread records used as sequence context only

**2.** Counsel for Solomon Samuel Barber (same-matter notice copy; acceptance disputed unless stated otherwise)

Name: Alex Bluestone

Address/Email used: alex@salemprobate.com

Date served: April 9, 2026

Service method actually used: Email notice transmission to counsel (same-matter notice copy; acceptance disputed unless stated otherwise)

Proof reference (receipt/tracking/affidavit/email log): April 9, 2026 filing-date outgoing email record, with April 3-4, 2026 service-labeled email chain, April 8, 2026 continuation thread, and FedEx receipt/tracking chain as sequence context support

Service-method key (methods used):

**1.** Email/eService notice copy to counsel (acceptance disputed unless stated otherwise).

**2.** Text message/MMS notice transmission.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: April 9, 2026

_____

Benjamin Barber
Address: 10043 SE 32nd Ave
City/State/Zip: Milwaukie, OR 97222
Phone: 971-270-0855
Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# SUPPLEMENTAL DECLARATION OF BENJAMIN BARBER RE: AUTHENTICATION OF APRIL 9, 2026 TRANSMISSION RECORDS

I, Benjamin Barber, declare as follows:

**1.** I am over 18 years of age and competent to testify to the matters stated in this declaration.

**2.** I submit this declaration to authenticate April 9, 2026 filing-date transmission records referenced in filed certificates of service.

## A. RECORDS IDENTIFIED

**3.** Supplemental Exhibit AT-1 is a true and correct copy of my April 9, 2026 outbound text/MMS transmission record(s) to (503) 381-6911 for same-matter filing notice.

**4.** Supplemental Exhibit AT-2 is a true and correct copy of my April 9, 2026 outbound email transmission record(s) to alex@salemprobate.com for same-matter filing notice.

**5.** If available, Supplemental Exhibit AT-3 includes transmission metadata (message identifiers, sent timestamps, headers, or provider-generated send confirmations) associated with AT-1 and AT-2.

## B. FOUNDATION FACTS

**6.** I personally sent or caused the transmissions reflected in AT-1 and AT-2.

**7.** The records were obtained from my own accounts/devices and preserved in this workspace in substantially the same form as received or exported.

**8.** To the extent prior thread records are referenced in service filings, I offer those earlier materials as sequence context; AT-1 and AT-2 are the filing-date transmission records for April 9, 2026.

## C. PURPOSE AND LIMITATION

**9.** I submit these records for authentication/foundation and filing-date transmission proof.

**10.** I understand that legal sufficiency of service remains for Court determination under applicable rules and orders.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct to the best of my knowledge.

DATED: April 9, 2026

_____

Benjamin Barber
Address: 10043 SE 32nd Ave
City/State/Zip: Milwaukie, OR 97222
Phone: 971-270-0855
Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# NOTICE OF FILING SUPPLEMENTAL DECLARATION RE: APRIL 9, 2026 TRANSMISSION-RECORD AUTHENTICATION

PLEASE TAKE NOTICE that Movant, Benjamin Barber, files the following supplemental declaration in support of the pending service-status and compliance filings:

**1.** Supplemental Declaration of Benjamin Barber Re: Authentication of April 9, 2026 Transmission Records.

This supplemental declaration is filed to authenticate filing-date transmission records for April 9, 2026 referenced in the filed-clean certificate variants and related packet materials.

Movant requests that this supplemental declaration be read together with the contemporaneous supplemental status notices, filed-clean service certificates, packet version index, and transmittal materials in this filing set.

DATED: April 9, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# CERTIFICATE OF SERVICE
# (NOTICE AND SUPPLEMENTAL DECLARATION RE APRIL 9, 2026 TRANSMISSION RECORDS)

I certify that on April 9, 2026, I served true copies of the following documents:

**1.** Notice of Filing Supplemental Declaration Re: April 9, 2026 Transmission-Record Authentication (filed in this matter);

**2.** Supplemental Declaration of Benjamin Barber Re: Authentication of April 9, 2026 Transmission Records (filed in this matter).

Service was completed on the following recipients:

**1.** Solomon Samuel Barber

Address/Contact used: 4305 NE 125th Ave, Vancouver, WA 98682; text/MMS to (503) 381-6911

Date served: April 9, 2026

Service method actually used: Text message / MMS notice transmission to (503) 381-6911

Proof reference (receipt/tracking/affidavit/email log): April 9, 2026 filing-date outbound transmission record(s) (AT-1)

**2.** Counsel for Solomon Samuel Barber (same-matter notice copy; acceptance disputed unless stated otherwise)

Name: Alex Bluestone

Address/Email used: alex@salemprobate.com

Date served: April 9, 2026

Service method actually used: Email notice transmission to counsel (same-matter notice copy; acceptance disputed unless stated otherwise)

Proof reference (receipt/tracking/affidavit/email log): April 9, 2026 filing-date outbound email transmission record(s) (AT-2)

Service-method key (methods used):

**1.** Email/eService notice copy to counsel (acceptance disputed unless stated otherwise).

**2.** Text message/MMS notice transmission.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: April 9, 2026

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

**NOTICE OF FILING SUPPLEMENTAL DECLARATION**
**RE: OUTBOUND RECORDS-REQUEST TRANSMISSION AUTHENTICATION**

PLEASE TAKE NOTICE that Movant, Benjamin Barber, files the following supplemental declaration to authenticate outbound transmission records for pending records-retrieval requests tied to proof-gated issues in this matter:

**1.** Supplemental Declaration of Benjamin Barber Re: Authentication of Outbound Records-Request Transmissions

(`209_supplemental_declaration_authenticating_outbound_records_request_transmissions_2026-04-09.md`).

This filing is offered to document request-transmission events for:

**1.** `REQ-26FE0586-001` (Clackamas Justice Court records request),

**2.** `REQ-FED-HAQC-001` (District of Oregon public docket guidance request), and

**3.** `REQ-SHERIFF-RETURN-001` (Clackamas Sheriff return/proof-of-service request).

This filing does not represent that requested records have been received; records remain pending unless and until produced.

DATED: April 9, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# SUPPLEMENTAL DECLARATION OF BENJAMIN BARBER RE: AUTHENTICATION OF OUTBOUND RECORDS-REQUEST TRANSMISSIONS

I, Benjamin Barber, declare as follows:

**1.** I am over 18 years of age and competent to testify to the matters stated in this declaration.

**2.** I submit this declaration to authenticate outbound transmission records for records requests made to obtain proof-gated materials referenced in this case.

## A. REQUEST IDENTIFIERS

**3.** The requests covered by this declaration are:

**a.** `REQ-26FE0586-001` (Clackamas Justice Court certified records request),

**b.** `REQ-FED-HAQC-001` (District of Oregon public docket guidance request), and

**c.** `REQ-SHERIFF-RETURN-001` (Clackamas Sheriff return/proof-of-service request for the reported April 9, 2026 service event).

## B. RECORDS IDENTIFIED

**4.** Supplemental Exhibit OR-1 is a true and correct copy of the outbound transmission record for `REQ-26FE0586-001`, including recipient channel, send timestamp, and sent message content.

**5.** Supplemental Exhibit OR-2 is a true and correct copy of the outbound transmission record for `REQ-FED-HAQC-001`, including recipient channel, send timestamp, and sent message content.

**6.** Supplemental Exhibit OR-3 is a true and correct copy of the outbound transmission record for `REQ-SHERIFF-RETURN-001`, including recipient channel, send timestamp, and sent message content.

**7.** Supplemental Exhibit OR-4, if available, contains transmission metadata (message IDs, headers, or delivery receipts) associated with OR-1 through OR-3.

## C. FOUNDATION FACTS

**8.** I personally sent or caused the transmissions reflected in OR-1 through OR-3.

**9.** The records were obtained from my own accounts/devices and preserved in substantially the same form as sent/exported.

**10.** The requests documented here are evidence-retrieval requests; they do not by themselves establish final adjudication, receipt of certified records, or resolved service proof.

## D. LIMITED PURPOSE

**11.** This declaration is offered to establish transmission/authentication foundation for outbound records-request events and related tracker updates.

**12.** Any characterization of preclusion, finality, or formal service proof remains subject to receipt/lodging of certified records and official return documents.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct to the best of my knowledge.

DATED: April 9, 2026

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# CERTIFICATE OF SERVICE (NOTICE AND SUPPLEMENTAL DECLARATION RE OUTBOUND RECORDS-REQUEST TRANSMISSIONS)

I certify that on [DATE OF ACTUAL SERVICE], I served true copies of the following documents:

**1.** Notice of Filing Supplemental Declaration Re: Outbound Records-Request Transmission Authentication

(filed in this matter);

**2.** Supplemental Declaration of Benjamin Barber Re: Authentication of Outbound Records-Request Transmissions

(filed in this matter).

Service was completed on the following recipients:

**1.** Solomon Samuel Barber

Address/Contact used: 4305 NE 125th Ave, Vancouver, WA 98682; text/MMS to (503) 381-6911

Date served: [DATE OF ACTUAL SERVICE]

Service method actually used: Text message / MMS notice transmission to (503) 381-6911

Proof reference: filing-date outbound transmission record(s), to be staged with service supplements.

**2.** Counsel for Solomon Samuel Barber (same-matter notice copy; acceptance disputed unless stated otherwise)

Name: Alex Bluestone

Address/Email used: alex@salemprobate.com

Date served: [DATE OF ACTUAL SERVICE]

Service method actually used: Email notice transmission to counsel (same-matter notice copy; acceptance disputed unless stated otherwise)

Proof reference: filing-date outbound email transmission record(s), to be staged with service supplements.

Service-method key (methods used):

**1.** Email/eService notice copy to counsel (acceptance disputed unless stated otherwise).

**2.** Text message/MMS notice transmission.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

Filing note:

**1.** Replace all bracketed placeholders with actual send date details before filing.

**2.** Do not file this certificate unless the service events described above have actually occurred.

**DATED: [DATE SIGNED]**

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# SUPPLEMENTAL DECLARATION OF BENJAMIN BARBER RE: ORCP 27 NOTICE-COMPLIANCE STATUS

**DRAFT TEMPLATE - COMPLETE ALL BLANKS BEFORE FILING**

## PRE-FILING COMPLETION CHECKLIST

**1.** Confirm all service-method/date/address blanks are completed for each recipient actually served.

**2.** Attach at least one proof record for each listed recipient (`N-1`, `N-2`, or additional labeled attachments).

**3.** If any ORCP 27 notice category is incomplete, state the reason and requested cure schedule in paragraph 4-5.

**4.** Confirm this declaration is signed and dated before filing.

**5.** Remove this checklist block or mark it as completed before filing the final executed declaration copy.

I, Benjamin Barber, declare as follows:

**1.** I am over 18 years of age and competent to testify to the matters stated herein.

**2.** I submit this declaration in support of the Motion for Appointment and Appearance of Guardian ad Litem.

**3.** Notice recipients served for ORCP 27 purposes (to the extent applicable in this protective posture):

**a.** Jane Kay Cortez (respondent/protected person):

**i.** service method used: _____

ii. date served: _____

iii. address/contact used: _____

**b.** Solomon Samuel Barber:

**i.** service method used: _____

ii. date served: _____

iii. address/contact used: _____

**c.** Other known interested persons identified by reasonable inquiry (if any):

**i.** name: _____

ii. service method used: _____

iii. date served: _____

iv. address/contact used: _____

**4.** If any ORCP 27 notice category was not completed, the reason is:

_____

**5.** If any category was not completed, I request targeted modification/waiver and a cure schedule for supplemental notice.

**6.** Supporting proof of service records for the entries above are attached as:

**a.** ORCP27 Notice Proof Exhibit N-1 (if attached);

**b.** ORCP27 Notice Proof Exhibit N-2 (if attached).

Filing note:

**1.** Complete all blanks before filing.

**2.** Do not file this declaration with unfilled placeholders.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct to the best of my knowledge.

DATED: _____, 2026

_____

Benjamin Barber

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

**CERTIFICATE OF SERVICE**
**RE: SOLOMON SANCTIONS PACKET (88 / 89 / 88A)**

I certify that on _____, 2026, I served true and correct copies of the following documents:

**1.** Motion to Compel Subpoena Compliance and for Appropriate Sanctions (Solomon Barber - Prefill) (88_motion_to_compel_subpoena_compliance_and_sanctions_solomon_prefill.md);

**2.** Declaration of Benjamin Barber Re Subpoena Noncompliance and Cure Efforts (Solomon Barber - Prefill) (89_declaration_re_subpoena_noncompliance_solomon_prefill.md);

**3.** [Proposed] Order on Motion to Compel Subpoena Compliance and for Appropriate Sanctions (Solomon Barber - Prefill) (88A_proposed_order_on_motion_to_compel_subpoena_compliance_and_sanctions_solomon_prefill.md);

**4.** Attached support set served with this packet (check all that apply and identify):

**a.** [ ] Subpoena packet docs (11/11A/11B/18/19/21)

**b.** [ ] Proof of service records

**c.** [ ] Deficiency notice and cure correspondence

**d.** [ ] Additional exhibits: _____.

I served these documents on the following person(s), with exact method/date/proof references:

**1.** Solomon Barber

Service address: 4305 NE 125th Ave, Vancouver, WA 98682

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log): _____

**2.** Counsel for Solomon Barber (same-matter notice copy unless acceptance expressly confirmed)

Name: Alex Bluestone

Service email: alex@salemprobate.com

Service address: _____

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log): _____

**3.** Additional party/counsel (if any): _____

Service address/email: _____

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log): _____

Service-method key (select only method(s) actually used for each recipient):

**1.** First-class U.S. Mail.

**2.** Personal service.

**3.** Email/eService (if permitted by rule/order/acceptance).

**4.** Other authorized method: _____.

**5.** Text message/MMS service (if permitted by rule/order or previously authorized alternate service).

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

This certificate is not filing-ready until each listed service event has actually occurred and supporting proof references are completed.

DATED: _____, 2026

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# DECLARATION OF BENJAMIN BARBER (SHORT-FORM FOR THRESHOLD RELIEF)

I, Benjamin Barber, declare as follows:

**1.** I am over 18 years of age and competent to testify to the matters stated in this declaration.

**2.** I submit this short-form declaration as the primary filing-facing declaration for threshold relief requests in the current motion set.

**3.** I make this declaration from personal knowledge of my own communications and events, and from my review of attached records.

## A. CORE RECORD ANCHORS

**4.** Exhibit 1 reflects a restraining-order grant and in-effect language dated November 20, 2025, against Solomon Samuel Barber.

**5.** Exhibit 1 also reflects language that no further service was necessary because respondent appeared in person and includes notice language describing an opposition/hearing path in the original matter.

**6.** Exhibit 2 reflects filing and notice timeline entries for case 26PR00641, including March 31, 2026 and April 2, 2026 references.

## B. SHOW-CAUSE SUPPORT (RECORD-FIRST)

**7.** In preserved March 10, 2026 Google Voice messages, I sent order-image MMS messages at approximately 10:36:48 to 10:36:49 AM Pacific Time.

**8.** In that same thread, Solomon Barber stated at approximately 10:39:26 AM Pacific Time, "Oh I understand, I'm just not incentivized to cooperate," and at approximately 10:45:53 AM Pacific Time, "Once I get served and it goes into effect, I will comply with whatever the order states. But it is not in effect."

**9.** The April 3-4, 2026 counsel email chain reflects service-labeled transmission to counsel Alex Bluestone and counsel's response that he did not accept service on behalf of Solomon while confirming representation in the Jane Cortez guardianship matter.

**10.** I request clause-specific show-cause analysis comparing each alleged conflicting statement or act to the exact quoted order term offered as violated.

**11.** I also state from personal knowledge that on April 9, 2026, a Clackamas County sheriff deputy served restraining-order papers on Solomon Samuel Barber in person, and I captured a smartphone photo of that event (file: "Solomon Service.HEIC"). Until the sheriff return/proof-of-service is

lodged, I offer this personal-observation/photo evidence as supplemental service proof context and not as a substitute for the agency's formal return.

11A. I do not request a final service-sufficiency finding based only on paragraph 11 without the official sheriff return/proof-of-service record.

## C. THRESHOLD PRECLUSION / SCOPE SUPPORT

**12.** The March 31, 2026 petition seeks broad authority over Jane Kay Cortez, including residence-related circumstances, APS interface, and possible law-enforcement transport.

**13.** Based on my review of current filed and lodged materials, overlapping housing/control issues also appear in a Justice Court eviction-response track (26FE0586) and a District of Oregon complaint track involving HACC and Quantum.

**14.** I offer cross-forum points as threshold scope context unless and until certified or filed-stamped records establish finality/identity elements for any dispositive preclusion branch.

**15.** I request non-dispositive narrowing and sequencing if full preclusion elements are not yet proven by admissible certified records.

15A. For consistency with the shared deontic mapping attachments, any dispositive preclusion branch corresponds to Rule ID R-PI-01 and remains certified-record gated.

15B. Any uncertified status note, oral relay, or summary chart regarding cross-forum status is offered as context only and not as completed proof of a dispositive preclusion element.

## D. GAL SUPPORT

**16.** The current record contains material factual conflict regarding authority history, service/compliance posture, and overlap between protective and housing-control allegations.

**17.** In my view, a GAL appointment/appearance clarification supports reliable fact development and protection of Jane Kay Cortez's interests.

## E. LIMITATIONS

**18.** This declaration is offered as an element-focused threshold declaration and is not intended to replace admissible exhibits, certified records, or testimony.

**19.** Any broader narrative chronology is maintained in the separate long-form background declaration and is offered there as context only.

**20.** I reserve the right to supplement with certified dockets, orders, transcripts, and filed-stamped records as they are obtained.

20A. For consistency with the shared deontic mapping attachments, show-cause compliance branches correspond to Rule IDs R-SC-01 and R-SC-02, and the service-return gate branch corresponds to Rule ID R-SVC-01.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____, 2026

_____

Benjamin Barber
Address: 10043 SE 32nd Ave
City/State/Zip: Milwaukie, OR 97222
Phone: 971-270-0855
Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

**DECLARATION OF BENJAMIN BARBER**
**RE: SUBPOENA NONCOMPLIANCE AND CURE EFFORTS**

I, Benjamin Barber, declare as follows:

**1.** I am the requesting party and have personal knowledge of the facts stated here.

**2.** I caused subpoena materials to be served on the responding custodian/person identified as:
_____.

**3.** The subpoena package included recipient subpoena, recipient attachment, Attachment A-2/B-2 definitions and search protocol, cover instruction sheet, and custodian compliance checklist.

**4.** Service details:

**a.** Date served: _____

**b.** Method served: _____

**c.** Person/entity served: _____

**5.** Response received (if any):

**a.** Date received: _____

**b.** Materials received: _____

**6.** Deficiencies identified in response:

_____

_____

**7.** I issued a written deficiency notice and demand to cure on:

_____

**8.** Cure deadline provided:

_____

**9.** Cure response received (if any):

_____

**10.** As of the date of this declaration, deficiencies remain unresolved as follows:

_____

_____

**11.** The missing materials are material to guardianship, collateral-estoppel, show-cause, and/or sanctions issues pending before the Court.

**12.** If the responding person is Solomon Barber, the unresolved production also includes (or should include) communications, notes, and records material to writ-of-assistance predicate facts, notice/service chronology, and handling of raised service/preclusion objections in this same matter.

**13.** If applicable to Solomon Barber, I further state that notice of deficiencies and cure demand was also directed to those writ-predicate and service/preclusion-objection record categories.

**14.** Where any Solomon-specific writ/filer-conduct sanctions branch is pursued, I offer this declaration to support record-completion and factual predicate development; I understand any non-subpoena sanctions theory should be addressed through separately noticed briefing identifying legal vehicle and evidentiary predicates.

**15.** This declaration is a template form and is not filing-ready until all blanks are completed with recipient-specific facts and supporting records.

**16.** I do not ask the Court to treat any unfilled template field as evidence.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: _____

_____

Benjamin Barber, Pro Se

10043 SE 32nd Ave

Milwaukie, OR 97222

**971-270-0855**

starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

## [PROPOSED] ORDER ON MOTION TO COMPEL SUBPOENA COMPLIANCE AND FOR APPROPRIATE SANCTIONS

The Court, having reviewed the motion, supporting declaration, and the file and record herein, FINDS and ORDERS:

**1.** The motion is: _____.

**2.** Responding custodian/person shall produce full supplemental subpoena-responsive materials by: _____.

**3.** Responding custodian/person shall produce a completed Custodian Compliance Checklist and Search Execution Report by: _____.

**4.** If any materials are withheld, responding custodian/person shall provide a privilege log sufficient to assess withholding by: _____.

**5.** Any sanctions awarded in this order are limited to remedies authorized by law and supported by the record developed on this subpoena-compliance branch.

**6.** Where the responding person is Solomon Barber, the Court sets a supplemental branch requiring a written response addressing writ-of-assistance predicate conduct, notice/service chronology, and handling of raised service/preclusion objections by: _____.

**7.** Any non-subpoena sanctions theory arising from the Solomon-specific writ branch shall be addressed only through separate, specifically noticed briefing identifying the legal vehicle and evidentiary predicates.

**8.** No sanctions finding under paragraph 6 or 7 may be entered unless the affected party had notice and an opportunity to respond to the specific factual predicates and cited records.

**9.** Further hearing, if required, is set for: _____.

**10.** Any duty in this order keyed to a blank date or blank deadline field is triggered only after that field is completed in the signed order.

**IT IS SO ORDERED.**

DATED: _____

_____

**CIRCUIT COURT JUDGE**

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# MOTION FOR LEAVE TO FILE SUPPLEMENTAL CERTIFIED EXHIBITS (EXHIBITS 8, 9, AND 10)

Movant, Benjamin Barber, respectfully moves for leave to file supplemental certified exhibits associated with previously filed motions in this matter.

## I. REQUESTED RELIEF

**1.** Grant leave to file supplemental certified exhibits numbered 8, 9, and 10 in the existing global exhibit legend.

**2.** Direct that Exhibits 8, 9, and 10 be treated as supplements to the pending motion set without requiring refiling of previously filed motions.

**3.** Set any limited schedule the Court deems appropriate for response directed to the supplemented certified record.

## II. GROUNDS

**4.** The current motion set expressly reserved supplementation upon receipt of certified docket/order/appearance materials.

**5.** Certified records are being obtained through clerk records requests and, once filed, will establish or clarify threshold issue-preclusion elements.

**6.** Supplementation will assist the Court by providing authenticated/certified source records for finality, issue identity, notice, and full-and-fair-opportunity analysis.

## III. SCOPE OF SUPPLEMENTAL EXHIBITS

**7.** Exhibit 8: Certified docket/register of actions for case `26PR00641`, including confirmation from the certified register that no signed order was entered (if so reflected).

**8.** Exhibit 9: Certified signed restraining-order/final-order record for case `25PO11530` (Sam Barber restraining-order matter) supporting issue-preclusion elements.

**9.** Exhibit 10: Certified hearing/appearance record showing notice and full and fair opportunity.

## IV. REQUESTED FILING TREATMENT

**10.** Movant requests that supplementation relate to and be read with:

**a.** Motion for Appointment and Appearance of Guardian Ad Litem;

**b.** Motion to Dismiss or, in the Alternative, to Limit Issues Pending Threshold Issue-Preclusion Record;

**c.** Motion for Order to Show Cause re: Respondent Solomon Barber's Failure to Appear and Filing of Precluded Claim; and

**d.** Declaration of Benjamin Barber in Support of Motions.

## V. RESERVATION

**11.** Movant reserves the right to submit additional certified transcript excerpts or clerk declarations if needed to resolve authenticity or completeness disputes.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# CERTIFICATE OF SERVICE
# (SUPPLEMENTAL CERTIFIED EXHIBITS 8, 9, AND 10)

I certify that on April 8, 2026, I served true and correct copies of the following supplemental filing documents:

**1.** Motion for Leave to File Supplemental Certified Exhibits (Exhibits 8, 9, and 10);

**2.** Supplemental Certified Exhibit 8;

**3.** Supplemental Certified Exhibit 9;

**4.** Supplemental Certified Exhibit 10; and

**5.** Any accompanying supplemental declaration or exhibit index update filed with this supplement.

I served the supplemental filing set on the following person(s):

**1.** Solomon Barber (Respondent/Petitioner)

Service address: 4305 NE 125th Ave, Vancouver, WA 98682

Date served: April 8, 2026 (text/MMS and/or direct service date used for this supplemental filing set)

Service method actually used: Text message / MMS transmission to (503) 381-6911 and/or other method actually used

Proof reference (receipt/tracking/affidavit/email log): Google Voice transcript records showing MMS/order-image transmissions and admissions in the same chain (14166 transcript: MMS sends at 2026-03-10 10:36:48-10:36:49 PT; Solomon responses at 10:39:26 and 10:45:53), plus supporting inbound records uid_743129 and uid_743131 and order-awareness records uid_660669 and uid_660690

**2.** Counsel for Solomon Barber (if appearance is active in this matter)

Name: Alex Bluestone

Service email: alex@salemprobate.com

Date served: 2026-04-03 (outgoing service-labeled email); 2026-04-04 (counsel response); and additional attorney transmission date used for this supplemental set: April 8, 2026

Service method actually used: Email transmission to counsel; same-day FedEx transmittal to counsel office; and/or additional attorney-channel transmission used for this supplemental set

Proof reference (receipt/tracking/affidavit/email log): 2026-04-03 service email chain + 2026-04-04 response; FedEx receipt no. HIOKO00722565, tracking 870305656111

**3.** Additional party/counsel (if any): _____

Service address/email: _____

Date served: _____

Service method actually used: _____

Proof reference (receipt/tracking/affidavit/email log):

_____

Service-method key (select only the method actually used for each recipient entry above):

**1.** First-class U.S. Mail.

**2.** Personal service.

**3.** Email/eService (if permitted by rule/order/acceptance).

**4.** Other: _____.

**5.** Text message/MMS service (if permitted by rule/order or previously authorized alternate service).

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED: April 8, 2026

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# [PROPOSED] ORDER GRANTING LEAVE TO FILE SUPPLEMENTAL CERTIFIED EXHIBITS 8, 9, AND 10

The Court, having reviewed Movant's Motion for Leave to File Supplemental Certified Exhibits (Exhibits 8, 9, and 10), and being fully advised, ORDERS:

**1.** The Motion is GRANTED.

**2.** Movant may file supplemental certified exhibits designated as Exhibit 8, Exhibit 9, and Exhibit 10 in this case.

**3.** Exhibits 8, 9, and 10 shall be treated as supplements to the pending motion set and declaration without requiring refiling of previously filed motions.

**4.** Any party response directed to the supplemental certified exhibits shall be filed by: _____.

**5.** Any reply in support of supplementation or use of the certified exhibits shall be filed by: _____.

**6.** The Court reserves all merits determinations regarding issue preclusion, notice, service sufficiency, contempt/sanctions, and related relief.

**IT IS SO ORDERED.**

DATED: _____, 2026

_____

Circuit Court Judge

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

**NOTICE OF FILING SUPPLEMENTAL CERTIFIED EXHIBITS**
**(EXHIBITS 8, 9, AND 10)**

PLEASE TAKE NOTICE that Movant, Benjamin Barber, files supplemental certified exhibits in support of the pending motion set as follows:

**1.** Supplemental Certified Exhibit 8: Certified docket/register of actions for case `26PR00641` (including no-signed-order posture if reflected by the certified register).

**2.** Supplemental Certified Exhibit 9: Certified signed restraining-order/final-order record for case `25PO11530` (Sam Barber restraining-order matter) supporting issue-preclusion elements.

**3.** Supplemental Certified Exhibit 10: Certified hearing/appearance record showing notice and full and fair opportunity.

This supplement is filed pursuant to prior reservations in the pending motions and/or any order granting leave to supplement the certified record.

Movant requests that these supplemental certified exhibits be read together with the pending motions and declaration currently before the Court.

DATED: _____, 2026

Respectfully submitted,

_____

Benjamin Barber, Pro Se

Address: 10043 SE 32nd Ave

City/State/Zip: Milwaukie, OR 97222

Phone: 971-270-0855

Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

# SUPPLEMENTAL DECLARATION OF BENJAMIN BARBER RE: CERTIFIED EXHIBITS 8, 9, AND 10

I, Benjamin Barber, declare as follows:

**1.** I am over 18 years of age and competent to testify to the matters stated in this declaration.

**2.** I submit this supplemental declaration in connection with filing supplemental certified Exhibits 8, 9, and 10.

**3.** I obtained or received these records through court clerk/records-custodian channels for use in this case.

## A. EXHIBIT IDENTIFICATION

**4.** Supplemental Exhibit 8 is the certified docket/register of actions for case `26PR00641`, including no-signed-order posture if reflected by the certified register.

**5.** Supplemental Exhibit 9 is the certified signed restraining-order/final-order record for case `25PO11530` (Sam Barber restraining-order matter) obtained for issue-preclusion analysis.

**6.** Supplemental Exhibit 10 is the certified hearing/appearance record, including notice/opportunity materials to the extent provided by the custodian.

## B. PURPOSE OF SUPPLEMENT

**7.** I submit these exhibits to provide certified source records supporting threshold issue-preclusion analysis, including finality, issue identity, party/privity alignment, and full-and-fair-opportunity review.

**8.** I request that the Court read these supplemental certified exhibits together with the pending motions and prior declaration in this case.

## C. LIMITATIONS / RESERVATION

**9.** To the extent any transcript portion, minutes, or appearance entry is incomplete in the records provided, I reserve the right to supplement with additional certified materials upon receipt.

**10.** I do not waive any pending requests for additional certified clerk or custodian records needed to complete the evidentiary record.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct to the best of my knowledge.

DATED: _____, 2026

_____

Benjamin Barber
Address: 10043 SE 32nd Ave
City/State/Zip: Milwaukie, OR 97222
Phone: 971-270-0855
Email: starworks5@gmail.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS
PROBATE DEPARTMENT

| | |
|---|---|
| In the Matter of:<br>Jane Kay Cortez,<br>Protected Person. | Case No. 26PR00641 |

**[PROPOSED] ORDER RE LODGING CERTIFIED RECORDS PENDING RULING ON MOTION FOR LEAVE TO SUPPLEMENT**

The Court, having reviewed the Notice of Lodging Certified Records Pending Ruling on Motion for Leave to File Supplemental Exhibits, ORDERS:

**1.** The lodged certified records are accepted as lodged materials in this case.

**2.** The lodged records shall remain part of the court file pending ruling on the Motion for Leave to File Supplemental Certified Exhibits.

**3.** Upon grant of leave, Movant may designate the lodged records as Supplemental Exhibits 8, 9, and 10 without duplicative refiling unless otherwise directed.

**4.** This Order does not decide the merits of issue preclusion, notice sufficiency, contempt/sanctions, or any other substantive issue.

**IT IS SO ORDERED.**

DATED: _____, 2026

_____

Circuit Court Judge